

NEW SERIES

No. 46

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8TH, 1787.

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

JANUARY, 1907

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

NEW SERIES

No. 46

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8TH, 1787.

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

JANUARY, 1907

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

The Project Gutenberg eBook of The Journal of Prison Discipline and Philanthropy (New Series, No. 46, January 1907)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Journal of Prison Discipline and Philanthropy (New Series, No. 46, January 1907)

Author: Pennsylvania Prison Society

Release date: May 5, 2018 [eBook #57090]

Language: English

Other information and formats: www.gutenberg.org/ebooks/57090

Credits: Produced by Larry B. Harrison, Wayne Jammond and the Online

Distributed Proofreading Team at <http://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE JOURNAL
OF PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO.
46, JANUARY 1907) ***

NEW SERIES

No. 46

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8TH, 1787.

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

JANUARY, 1907

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

CONSTITUTION OF THE PENNSYLVANIA PRISON SOCIETY.

When we consider that the obligations of benevolence, which are founded on the precepts and example of the Author of Christianity, are not canceled by the follies or crimes of our fellow-creatures, and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt (the usual attendants of prisons) involve with them, it becomes us to extend our compassions to that part of mankind who are the subjects of those miseries. By the aid of humanity their undue and illegal sufferings may be prevented; the link which should bind the whole family of mankind together under all circumstances, be preserved unbroken; and such degree and modes of punishment may be discovered and suggested as may, instead of continuing habits of vice, become the means of restoring our fellow-creatures to virtue and happiness. From a conviction of the truth and obligations of these principles, the subscribers have associated themselves under the title of “THE PENNSYLVANIA PRISON SOCIETY.”

For effecting these purposes they have adopted the following Constitution:

ARTICLE I.

The officers of the Society shall consist of a President, two Vice-Presidents, two Secretaries, a Treasurer (who may be an undoubted first-class Trust and Safe Deposit Company regularly chartered by the State or National Authorities), and two Counselors.

The Committee on Membership in the “Acting Committee” shall be the nominating committee of the Society, whose duty it shall be after careful consideration to nominate members of the Society most suitable in their

judgment for the above named offices. The officers and the Acting Committee shall be chosen by ballot, at the Annual Meeting of the Society, which shall be on the fourth Thursday in the First month (January) of each year and they shall continue in office until their successors are elected. A majority of the whole number of votes cast shall be necessary to the choice of any nominee for office.

In case an election for any cause shall not be held at the time above mentioned, it shall be the duty of the President to call a Special Meeting of the Society, within thirty days for the purpose of holding such election, of which at least three days' notice shall be given.

ARTICLE II.

The President shall preside in all meetings, and subscribe all public acts of the Society. He may call special meetings whenever he may deem it expedient, and shall do so when requested in writing by five members. In his absence one of the Vice-Presidents may act in his place.

ARTICLE III.

The Secretaries shall keep fair records of the proceedings of the Society, and shall conduct its correspondence.

ARTICLE IV.

The Treasurer shall pay all orders of the Society or of the Acting Committee, signed by the presiding officer and the Secretary, and shall present a statement of the receipts and expenditures at each stated meeting of the Society, and an annual report at the annual meeting in the First month (January).

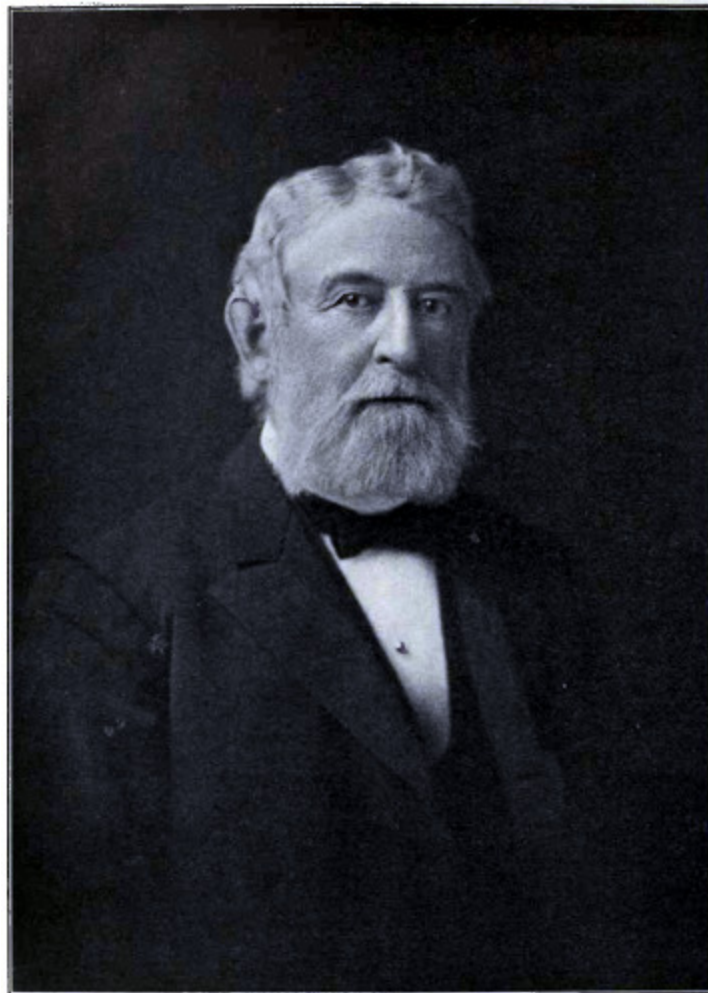
All capital moneys, investments, securities and property belonging to the Society may be placed in the care and custody of such trust company as the

Society may by resolution direct, for safe keeping and for the collection of the income and principal thereof.

All investments and re-investments of capital money shall be made by direction of at least three members of the Finance Committee of the Society.

All bequests and life subscriptions which may be received shall be safely invested, the income only thereupon to be applied to the current expenses of the Society.

[\[CONTINUED ON THIRD PAGE OF COVER.\]](#)



JOSHUA L. BAILY.
President Pennsylvania Prison Society, 1907.

[See page 15.](#)

NEW SERIES

No. 46

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY

PUBLISHED ANNUALLY

UNDER THE DIRECTION OF "THE PENNSYLVANIA PRISON SOCIETY"

INSTITUTED MAY 8th, 1787

JANUARY, 1907

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

THE
PENNSYLVANIA PRISON SOCIETY

**(FORMERLY CALLED THE PHILADELPHIA SOCIETY FOR
ALLEVIATING THE
MISERIES OF PUBLIC PRISONS.)**

**Place of Meeting, State House Row, Philadelphia.
S. W. Cor. Fifth and Chestnut Sts.**

The 120th Annual Meeting of "THE PENNSYLVANIA PRISON SOCIETY" was held on the afternoon of the First month (January), 24th, 1907, with SAMUEL BIDDLE as Chairman, and GEO. S. WETHERELL as Secretary. The Minutes of the 119th Annual meeting were read and approved, after which the Treasurer presented his report.

Memorials on the death of the President, GEO. W. HALL, and the First Vice-President, the REV. JAMES ROBERTS, D. D., were submitted and ordered spread on the Minutes.

The officers and the members of the Acting Committee for 1907 were elected (See next page).

Article IV of the Constitution as amended was adopted.

The Editorial Committee was directed to print 7,500 copies of the JOURNAL, and to make such alterations and additions as might be necessary.

JOHN J. LYTLE, *Gen. Secretary.*

Editorial Committee for 1907: REV. R. HEBER BARNES, Chairman; REV. J. F. OHL, DEBORAH C. LEEDS, JOSEPH C. NOBLIT, DR. WILLIAM C. STORKES.

Persons receiving the Journal are invited to correspond with, and send any publications on Prison and Prison Discipline, and articles for the Journal to the Chairman of the Editorial Board, 600 North Thirty-second Street, Philadelphia, Pa., or S. W. Cor. Fifth and Chestnut Streets.

The National Prison Congress of the U. S. for the past eight years designated the fourth Sunday in October annually as Prison Sunday. To aid the movement for reformation, some speakers may be supplied from this Society. Apply to the chairman of that Committee.

JOHN J. LYTLE, S. W. Cor. Fifth and Chestnut Streets, Philadelphia, is the General Secretary of the Society, giving especial attention to the Eastern Penitentiary.

FREDERICK J. POOLEY is Agent for the County Prison, appointed by the Prison Society. Address mail to 500 Chestnut Street, Office of Pennsylvania Prison Society.

OFFICERS OF THE SOCIETY FOR 1907.

PRESIDENT
JOSHUA L. BAILY

VICE-PRESIDENTS
REV. HERMAN L. DUHRING, D. D. REV. F. H. SENFT

TREASURER
JOHN WAY

SECRETARIES
JOHN J. LYTLE FREDERICK J. POOLEY

COUNSELORS
HON. WM. N. ASHMAN HENRY S. CATTELL

MEMBERS OF THE ACTING COMMITTEE

P. H. Spelissy,	Miss C. V. Hodges,	A. J. Wright,
John H. Dillingham,	Rebecca P. Latimer,	Charles H. LeFevre,
Dr. Emily J. Ingram,	Rev. Floyd W. Tomkins,	Mrs. E. M. Stillwell,
William Scattergood,	Samuel L. Whitson,	Solomon G. Engle,
Mrs. P. W. Lawrence,	Harry Kennedy,	Richard H. Lytle,
Mary S. Whelen,	Layyah Barakat,	Charles P. Hastings,
Isaac Slack,	Rev. J. F. Ohl,	Rev. C. Rowland Hill,
William Koelle,	William E. Tatum	Isaac P. Miller
Rev. R. Heber Barnes,	Mary S. Wetherell,	Elias H. White,
Dr. William C. Stokes,	George S. Wetherell,	John Smallzell,
William T. W. Jester,	Henry C. Cassel,	Jacob Hoffman,
Mrs. Horace Fassett,	Albert Oetinger,	John D. Hampton,

William F. Overman,	Rev. Philip Lamerdin,	Charles McDole,
Deborah C. Leeds,	David Sulzberger,	Jonas G. Clemmer,
J. Albert Koons,	Mrs. E. W. Gormley,	Susanna W. Lippincott,
George R. Meloney,	Frank H. Longshore,	John A. Duncan.
Joseph C. Noblit,	Rev. H. E. Meyer,	

Visiting Committee for the Eastern State Penitentiary:

John J. Lytle,	Harry Kennedy,	Rev. Solomon G. Engle,
P. H. Spellissy,	Layyah Barakat,	Charles P. Hastings,
John H. Dillingham,	Rev. J. F. Ohl,	Rev. F. H. Senft,
Isaac Slack,	William E. Tatum,	Rev. C. Rowland Hill,
Rev. R. Heber Barnes,	Mary S. Wetherell,	Isaac P. Miller,
Dr. William C. Stokes,	George S. Wetherell,	Elias H. White,
William T. W. Jester,	Albert Oetinger,	John Smallzell,
Deborah C. Leeds,	Henry C. Cassel,	Jacob Hoffman,
Mrs. Horace Fassett,	Rev. Philip Lamerdin,	John D. Hampton,
George R. Meloney,	David Sulzberger,	Susanna W. Lippincott,
Joseph C. Noblit,	Frank H. Longshore,	Charles McDole,
Rebecca P. Latimer,	Rev. H. E. Meyer,	Jonas G. Clemmer.
Samuel L. Whitson,	Charles H. LeFevre,	

Visiting Committee for the Philadelphia County Prison:

F. J. Pooley,	Mrs. E. M. Stillwell,	George S. Wetherell,
Deborah C. Leeds,	William T. W. Jester,	Layyah Barakat,
Miss C. V. Hodges	Mrs. P. W. Lawrence,	John A. Duncan,
David Sulzberger,	Mrs. Horace Fassett,	Susanna W. Lippincott.
Rev. H. E. Meyer,	Mary S. Wetherell,	

For the Holmesburg Prison:

F. A. Pooley,	Isaac Slack,	David Sulzberger.
	Layyah Barakat,	

For the Chester County Prison:

William Scattergood,	Deborah C. Leeds,
----------------------	-------------------

For the Delaware County Prison:

Deborah C. Leeds.

For the Western Penitentiary and Allegheny County Prison:

Mrs. E. W. Gormley.

For the Counties of the State at Large:

Mrs. E. W. Gormley, Deborah C. Leeds, Frederick J. Pooley,
Layyah Barakat.

For the House of Correction:

F. J. Pooley, Layyah Barakat, Isaac Slack.
Deborah C. Leeds, David Sulzberger,

STANDING COMMITTEES FOR 1907.

On Library:

Rev. J. F. Ohl, Rev. R. Heber Barnes, F. J. Pooley.

On Accounts:

Charles P. Hastings, Albert Oetinger, John Smallzell.

Editorial Committee:

Rev. R. Heber Barnes, Deborah C. Leeds, Dr. William C.
Stokes.

Rev. J. F. Ohl, Joseph C. Noblit,

On Membership in the Acting Committee:

Dr. William C. Stokes, Albert Oetinger, Charles P. Hastings.
George S. Wetherell, Elias H. White,

On Finance:

George S. Wetherell, David Sulzberger, William Scattergood,
A. J. Wright.

On Employment of Discharged Prisoners:

Isaac Slack, John D. Hampton, Mrs. Horace Fassett,
Albert Oetinger, Rev. H. L. Duhring, D.
D., John A. Duncan,
William Koelle, Frederick J. Pooley, Mrs. P. W. Lawrence.
Henry C. Cassel,

Auditing Committee:

Joseph C. Noblit, John H. Dillingham.

On Police Matrons in Station Houses:

Mrs. P. W. Lawrence, Dr. Emily J. Ingram, Mary S. Wetherell.

On Prison Sunday:

Rev. R. Heber Barnes,
Rev. H. L. Duhring, D.
D.,

Rev. J. F. Ohl,
Rev. Philip Lamerdin,

Rev. F. H. Senft.

On Legislation:

Rev. J. F. Ohl,
Rev. H. C. Meyer,

Joseph Noblit,
Rev. R. Heber Barnes,

William Scattergood.



THE PENNSYLVANIA PRISON SOCIETY.
Exterior of Office, S. W. Cor. Fifth and Chestnut Streets.

JOURNAL OF PRISON DISCIPLINE
ONE HUNDRED AND TWENTIETH YEAR
1787 **OF** **1907**
THE PENNSYLVANIA PRISON SOCIETY
ANNUAL REPORT OF JOHN J. LYTTLE, GENERAL SECRETARY

In submitting this, my Seventeenth Annual Report, it is with renewed feelings of devout thankfulness to my Heavenly Father that He has spared my life through another year, and given me the health and strength to perform a service so near and dear to my heart.

In one respect the work of the Pennsylvania Prison Society is unique. Besides the General Secretary, whose labors are confined chiefly to the Eastern Penitentiary, and the Agent for the County Prison, the Society has an "Acting Committee" of fifty members, who by two legislative enactments have the rights of official visitors. The first of these acts became operative in 1829. This was supplemented by the act approved March 20, 1903, which is as follows:

AN ACT

To make active or visiting committees, of societies incorporated for the purpose of visiting and instructing prisoners, official visitors of penal and reformatory institutions.

SECTION I. Be it enacted, etc., That the active or visiting committee of any society heretofore incorporated and now existing in this Commonwealth for the purpose of visiting and instructing prisoners, or persons confined in any penal or reformatory institution, and alleviating their miseries, shall be and are hereby made official visitors of any jail, penitentiary, or other penal or

reformatory institution in this Commonwealth, maintained at the public expense, with the same powers, privileges, and functions as are vested in the official visitors of prisons and penitentiaries, as now prescribed by law: Provided, That no active or visiting committee of any such society shall be entitled to visit such jails or penal institutions, under this act, unless notice of the names of the members of such committee, and the terms of their appointment, is given by such society, in writing, under its corporate seal, to the warden, superintendent or other officer in charge of such jail, or other officer in charge of any such jail or other penal institution.

Approved—The 20th day of March, A. D. 1903.

SAML. W. PENNYPACKER.

The foregoing is a true and correct copy of the Act of the General Assembly No. 48.

FRANK M. FULLER,
Secretary of the Commonwealth.

THE EASTERN PENITENTIARY

Under the rights thus conferred those members of the Acting Committee of the Pennsylvania Prison Society assigned to the Eastern Penitentiary visit prisoners in their cells. It is found that this personal work of Christian men and women is productive of good results. In the privacy of the cell hearts and lives are laid open, impressions are made, resolutions are formed, and changes are brought about that under a less personal and individual system of treatment would be well-nigh impossible. The corridor for female prisoners is in charge of a matron, and is regularly visited by women members of the Acting Committee.

During the past year I made over three hundred visits to the Penitentiary; and have had more than three thousand personal interviews with men. Those who need it receive a complete outfit of new clothing on their discharge. But looking after the physical well-being of a man when he leaves I regard as the least important of my duties. I ascertain what his past

has been, what his prospects are for the future, and in what way he can be aided in carrying out the good resolutions he may have formed. Thus with good advice and helpful service the man is again given an opportunity to rehabilitate himself.

Besides caring for those just discharged, the General Secretary and the Agent of the County Prison also extend aid to men who have been released for some time, but who have failed to secure employment. This is done at the relief station maintained near the Penitentiary, which is open every morning. Here men who are found to be really deserving are supplied with meal tickets, lodging-room rent, and goods to sell.

The total amount expended during the past year from the Fund for Discharged Prisoners was \$3,795.56. Tools were given to men to the amount of \$69.16.

As heretofore, Divine services were held in the different corridors each First Day morning under the direction of the Moral Instructor, the Rev. Joseph Welsh. The speakers were supplied by the Local Preachers' Association of the Methodist Episcopal Church, the Protestant Episcopal City Mission, and the Lutheran City Mission.

The Sunday Song Services at 4 P. M. by choirs from different churches, arranged for by the Rev. H. L. Duhring, D. D., Superintendent of the Protestant Episcopal City Mission, were continued during the year.

I am greatly indebted to all the officers and overseers of the Penitentiary for their uniform courtesy and their valuable assistance in the prosecution of my work. Charles C. Church has proved himself to be an able and efficient warden, to whose administrative ability and genial manner the discipline and good order of the institution are chiefly due.

From the Annual Report of the Penitentiary I gather the following statistics:

POPULATION

White

Colored

Total

	Males	Females	Males	Females	
Remaining from 1905	859	13	257	13	1,142
Committed during 1906	303	8	111	9	431
	—	—	—	—	—
Total population	1,162	21	368	22	1,573
Discharged during 1906	336	6	96	5	443
	—	—	—	—	—
Remaining at the close of 1906	826	15	272	17	1,130

THE DISCHARGES WERE AS FOLLOWS:

By Commutation Law	406
“ Order of Court	7
“ Department of Justice	8
“ Order of Huntingdon Reformatory	4
“ Pardon	3
“ Suicide	1
Died	14
	—
Total	443

Average daily population, 1906	1,144
Largest number in confinement during year	1,175
Smallest number in confinement during year	1,103

TABLES RELATING TO THE 431 CONVICTS RECEIVED DURING 1906.

(1) SCHOOL

No. of Convicts.

Attended public school	348
Attended private school	8
Attended public and private school	6
Never went to school	69
	—
Total	431

(2) EDUCATION

Read and write	312
Read and write imperfectly	56
Illiterate	63
	—
Total	431

(3) TRADES

Number having trades	159
Number having no trades	272
	—
Total	431
Number idle at time of arrest	116

(4) AGE OF CONVICTS

Age	White	Colored	Total
From 15 to 20 years	31	14	45
“ 21 “ 25 “	74	34	108
“ 26 “ 30 “	61	36	97
“ 31 “ 35 “	53	14	67
“ 36 “ 40 “	31	7	38
“ 41 “ 45 “	26	6	32
“ 46 “ 50 “	15	3	18
“ 51 “ 55 “	11	2	13
“ 56 “ 60 “	5	1	6

“ 61 “ 65 “	2	1	3
“ 66 “ 70 “	2	1	3
Above 70 years		1	1
	—	—	—
Total;	311	120	431

(5) CONVICTIONS

First	Conviction				268
Second	“	1st time here			63
“	“	2d	“	“	31
Third	“	1st	“	“	16
“	“	2d	“	“	11
“	“	3d	“	“	8
Fourth	“	1st	“	“	8
“	“	2d	“	“	4
“	“	3d	“	“	1
“	“	4th	“	“	1
Fifth	“	1st	“	“	2
“	“	2d	“	“	2
“	“	3d	“	“	1
“	“	4th	“	“	2
“	“	5th	“	“	1
Sixth	“	2d	“	“	3
“	“	3d	“	“	2
Seventh	“	2d	“	“	2
“	“	6th	“	“	2
Eighth	“	5th	“	“	1
Eleventh	“	3d	“	“	1
Fifteenth	“	7th	“	“	1
					—
Total					431

PARENTAL RELATIONS AT 16 YEARS

Parents living	295
Mother living	65
Father living	38
Parents dead	33
	—
Total	431

CONJUGAL RELATIONS

Single	254
Married	152
Widowed	25
	—
Total	431

NUMBER HAVING CHILDREN

Number having children	112
Number of children	301

NATIVITY

Born in the United States	346
Foreign born	85
	—
Total	431
Of the foreign born, naturalized	31
Of the foreign born, Not naturalized	54
	—
Total	85

RECEPTIONS CLASSIFIED AS TO DISTRICTS

Received from Manufacturing Districts	161
Received from Mining Districts	70
Received from Agricultural Districts	200
	—

Total	431
-------	-----

The following figures were gathered by the Moral Instructor, the Rev. Joseph Welsh, in his interviews with the prisoners admitted during the year:

Total number received during the year	431
Number who attended Sunday School	286
Number who attended Church	232
Number who were members of Church	157
Number who were abstainers from use of liquor	63
Number who were moderate users of liquor	159
Number who were intemperate users of liquor	170
Number who were users of tobacco	356
Number who gambled with cards	29
Number who gambled on horse races	11
Number who visited immoral women	158
Number who kept mistresses	2

THE PHILADELPHIA COUNTY PRISON

This Prison still keeps up its record as a well managed institution. Unfortunately, the Convict Department at Holmesburg is somewhat overcrowded, and it is to be regretted that funds have not yet been provided by the City Councils for additional corridors, so that each man could be separately confined as the law provides. It is admitted by the advocates both of the separate and of the congregate system, that those awaiting trial should be strictly separated. To place a first, and especially a young offender, with a hardened criminal, simply means the production of another criminal, and places the State itself in the position of committing a wrong against one of its own citizens.

Frederick J. Pooley, one of the Secretaries of the Society and Agent at the County Prison, is more untiring than ever in his efforts for the betterment of those incarcerated in Moyamensing, at Tenth and Reed Streets, and in the New County Jail (Convict Department), at Holmesburg. He visits both institutions during five days in the week, seeks to aid men temporally and morally, is instrumental in having cases brought to speedy trial, and in some cases even looks after the destitute families of prisoners. At Moyamensing, women members of the Acting Committee also visit in the Women's Department.

During the year 1906 there were received at the County Prison, Tenth and Reed Streets:

White males	17,085
White females	2,180
Black males	3,106
Black females	1,005
Total committed, 1906	23,376
Total discharged, 1906	23,452

After trial many were sent to Holmesburg.

THE ASSOCIATED COMMITTEE OF WOMEN ON POLICE MATRONS

The Associated Committee of Women on Police Matrons in Station Houses meets monthly with three representatives from each of a number of the charitable associations of Philadelphia. On this Committee, the Pennsylvania Prison Society is represented by Mrs. P. W. Lawrence, Dr. Emily J. Ingram and Mary S. Wetherell. The following is the report of the Committee for the past year:

The Committee on Police Matrons held ten regular and one special meeting during the year ending December 31, 1906.

The membership of this Committee is now twenty-one women who represent seven societies, namely, the Pennsylvania Prison Society, Women's Christian Temperance Union, Civic Club, New Century Club, Young Women's Christian Association, Christian League, and Mothers' Club. The usual attendance is from eight to twelve members. Reports are received from all the Matrons at each meeting. There are twenty-two. The fourteenth district (Germantown) was supplied with a Matron in March, 1906. The effort is made that each Matron shall receive at least one visit a month. The meeting of the Conference of Charities in Philadelphia in May last brought us unusual interest in the work of Police Matrons elsewhere, and we formed a permanent committee to secure knowledge of it in other cities, and comparison of methods with them. At several meetings of this year, four Matrons at a time were invited to meet with the Committee, and offer suggestions and state experiences requiring help and study. The Needle Work Guild coöperates with the Committee for supplying clothing to the Matrons for their use with needy women and children under their care. Mrs. Fletcher, our Senior Matron, completed her twentieth year of service, and was given a reception by the Committee, at which the Directors and other officials were present. In this time she has had 9,000 women and 2,900 children under her care. The Director of Public Safety, Robert McKenty, has been especially interested in an effort to give personal help to erring women and girls, and extends every facility for our communication with such, by directing the Lieutenants to coöperate with our efforts to redeem them from disgrace and despair. The numbers given in our reports are, of course, from twenty-two districts only. There are fourteen others without Matrons, where many women and children are received. We have been assured that a Matron will be appointed in West Philadelphia very soon, and there is also a prospect of more effective systematic work in coöperation and supervision of this branch of police administration.

STATISTICS

(Except as to totals and conditions when received, statistics cannot be made absolutely accurate, especially as to "Nationality and Disposal.")

<i>Women under care from January, 1906, to January, 1907</i>	9,295
Arrested	7,475
Lost or seeking shelter	379
Mothers	2,898
Intoxicated	3,679
White	6,502
Colored	2,288

Disposals.

Discharged with and without fines	2,074
Sent to Reformatories	672
House of Correction	923
County Prison	2,255
Americans	5,320
Foreigners	2,934
<i>Children under care from January, 1906, to January, 1907</i>	6,839
Arrested	3,417
Lost or ran away	2,846
White	5,497
Colored	651
Brought with parents	468

Disposals.

Sent home	4,695
S. P. C. C. and Aid Society	387
Charities and Reformatories	449
House of Detention and Juvenile Court	572

Respectfully submitted,
MRS. P. W. LAWRENCE.

CHESTER COUNTY PRISON

William Scattergood, President of the Board of Inspectors, makes weekly visits to this prison, and reports it in good condition. It is considered a model prison. Deborah C. Leeds, a member of the Acting Committee, has also visited it during the year.

COUNTY PRISON AT MEDIA

Deborah C. Leeds has visited this prison several times during the year, and reports it a well conducted institution.

ALLEGHENY COUNTY

Mrs. E. W. Gormley, Superintendent of the Prison and Jail Department of the W. C. T. U., is also a member of the Acting Committee of the Pennsylvania Prison Society, and as such an official visitor to the penitentiaries, county jails and reformatories of the Commonwealth. We are highly favored in having a member who is doing efficient work in the western part of the State.

DOOR OF BLESSING

This institution for discharged female prisoners was established and is under the supervision of Mrs. Horace Fassett, who is an official visitor at the Eastern Penitentiary and the County Prison. She writes: "The Door of Blessing goes steadily on in its good work under its noble matron, Gertrude Brown. Since January, 1906, fifty women and four babies were sent there from our County Prison, the House of Correction, and the Eastern Penitentiary. All of these were placed in situations in the country, mostly on farms. Some have returned to go to better positions, some have remained, and very few have gone back to their old life. The Door of Blessing is a home for these dear children in every sense of the word—a haven of rest and peace. All love it and look forward to their afternoons out, that they may go there and have supper with the matron and tell her of their joys and sorrows, to which she listens with loving sympathy. Six women were sent

to their homes, their families being willing to receive them after a short stay at the Door of Blessing.”

HOME OF INDUSTRY

This institution extends help to men discharged from the Eastern Penitentiary and the County Prison. It provides board and shelter for these, gives them employment in broom-making, for which they receive compensation, and seeks to bring all who enter it under the saving power of the Gospel. The efficient Superintendent is Frank H. Starr, who makes every effort to place men in situations when they leave the Home.

GALILEE MISSION

This is under the care of the Protestant Episcopal Church. A large number of men from the Penitentiary and County Prison have been sent there for meals and lodgings, sometimes only for a few days, and at other times for a week or two until they could obtain work.

HOPE HALL, NEW YORK. UNDER THE CARE OF MRS. BALLINGTON BOOTH

During the year a number of men have been sent to this place from the Eastern Penitentiary. Mrs. Booth always receives such with a warm welcome, and often obtains good situations for them.

PRISON SUNDAY

In the early part of October, 1906, the Committee on Prison Sunday sent out a circular letter, urging the observance of October 21st as Prison Sunday, to thirty-three hundred ministers of the Methodist Episcopal, the Presbyterian, the Baptist, the Lutheran, the Protestant Episcopal, and the Reformed Churches in Pennsylvania, and to six hundred daily and weekly newspapers.

**FROM THE MINUTES
MEMORIALS OF DECEASED MEMBERS**

GEORGE W. HALL

George W. Hall, former member of the State Legislature and of City Councils, a well-known financier, and President of the Pennsylvania Prison Society, passed away on December 14, 1906, in the 77th year of his age. He was a member of the Franklin Institute, a director of the School of Design for Women, a director of the Home for Feeble Minded Children at Elwyn, a member of the St. Andrew's Society, a trustee of the Second Presbyterian Church, and an inspector of the Philadelphia County Prison.

It seems proper that there should be a minute of record of one who for years has been an active member, besides being a life member of the Society. He spent much time in looking after the welfare of the prisoners at the County Prison, Tenth and Reed Streets, and at Holmesburg, where he will be greatly missed.

May this minute be recorded and a copy sent to the surviving members of his family.

REV. JAMES ROBERTS, D. D.

Rev. James Roberts, D. D., was born at Montrose, Scotland, December 25, 1839.

He came to this country with his parents at an early age, and was graduated from the Princeton Theological Seminary in 1868. His first charge was at Coatesville, Pa., where he remained until 1885, when he took charge of the Church at Darby, Pa. After remaining there ten years he accepted a call to Lambertville, N. J. On leaving this charge he became Superintendent of the Mercer Home for Aged and Retired Ministers, which position he filled until called suddenly from earth on September 27, 1906. His genial, affectionate ways widened the circle

of his friends, who were found among all classes. It is with sincere sorrow that our Society records the departure of another of its most honored members and Second Vice-President.

Resolved, That this minute be entered on our records and a copy thereof with our sympathies be sent to the bereaved family.



THE PENNSYLVANIA PRISON SOCIETY.

I close my report with the earnest wish that the Pennsylvania Prison Society may constantly widen its scope of operations and grow in efficiency and usefulness as it grows in years.

The work I have performed during not only the last, but for many years, has been very dear to my heart, and I have felt that I have had an especial call to the service. Conscious, however, of my need continually of Divine guidance

in all that I have done in His name, I have earnestly sought for that wisdom which will enable me to do all for Him.

With sincere desire that I may be a humble instrument in His hands in winning souls unto Christ, this report is respectfully submitted.

JOHN J. LYTLE,
General Secretary.

Joshua L. Baily was elected President of The Pennsylvania Prison Society at the annual meeting, January, 1907. His membership in the Society dates from 1851 and he is the oldest member now living. For a number of years he was a member of the Acting Committee and a regular visitor of the Eastern Penitentiary. His great interest in prison discipline induced him, some years ago, to visit voluntarily all the penitentiaries in the Atlantic States, as well as some of those in the States of the Central West, and he visited also many of the County Prisons in Pennsylvania and other States. His interest in correctional institutions was further shown by ten years' service on the Board of Managers of the House of Refuge.

Mr. Baily has been no less actively interested in charitable institutions, having been for more than fifty years a manager of The Philadelphia Society for the Employment and Instruction of the Poor, of which he is now President. He was one of the founders, and for eighteen years the President of The Philadelphia Society for Organizing Charity. He is also a member and manager of a number of other benevolent societies, so that by reason of long experience, in both correctional and charitable service, Mr. Baily comes to the Presidency of the Prison Society well equipped for the duties devolving upon him. Although still engaged in mercantile business, Mr. Baily gives a large portion of his time, as well as his means, to benevolent purposes, and devotes thereto a degree of vigor, both mental and physical, quite unusual in one of his advanced years.

THE NATIONAL PRISON CONGRESS

ALBANY, NEW YORK, SEPTEMBER, 15-20, 1906.

The National Prison Association met in its annual Congress, in the Senate Chamber of the State Capitol, at Albany, N. Y., on the evening of September 15, 1906. The meeting was called to order by the Chairman of the Local Committee, Mr. James F. McElroy, and prayer was offered by the Rev. W. F. Wittaker, D. D., pastor of the First Presbyterian Church.

The Hon. Julius E. Mayer, Attorney-General, represented the Governor in the address of welcome in behalf of the State, and the Mayor of Albany, the Hon. Charles H. Gans, spoke for the city. The Rev. Dr. Frederick Howard Wines made the response, in which he dwelt in reminiscent vein on some of his experiences since the first meeting of the Association, and spoke especially of the leading men who were connected with it during its early history. Dr. Wines advocated three reforms: 1, the abolition of the "sweating" or "third-degree" system, which he called an outrage on the rights of prisoners; 2, the reorganization of the jury system, so that juries could no longer be selected by the "Gang" for the express purpose of defeating justice; and 3, the dismissing of small misdemeanants on their own recognizance, instead of crowding the jails with these.

Dr. Wines then introduced the President of the Association, the Hon. Cornelius V. Collins, Superintendent of Prisons of New York State.

PRESIDENT'S ADDRESS

Mr. Collins, after alluding briefly to the purposes and work of the Association, rehearsed the part his own State had taken in the development of plans for the scientific treatment of criminals. Having traced the successive steps in prison reform, in which he showed that New York State had taken the lead, he said:

"Public sentiment has always called for the education and training of the young. How much more important and of what inestimable value is the saving of the adult. Situated as we are here, at the gateway of the republic, we admit at Ellis Island more than a million new people each year. Vital

statistics in New York City gave 59,000 births last year, only 11,000 of which were of American parentage. Austria, Russia and Italy each sent us 200,000 immigrants last year. What is more natural than that many of them, wholly unacquainted with our country, our language and our laws, should in their first effort at living in the land of liberty run counter to our laws and find their way to prison. Surely they do come, and the number is constantly increasing. There are now 12,000 convicts in the prisons of this State, made up largely from this cosmopolitan army of ignorance and superstition. This is the problem we have to solve in New York State, and while it is no doubt a fact that our State will always have more than others, it is nevertheless true that every State in the Union will have this class of prisoners to deal with in increasing numbers as time goes on.”

Superintendent Collins detailed the good that followed the separation and classification of prison inmates into groups or grades and the training of the mental faculties through the plan of education in vogue in New York State prisons. The labor and industrial training provided in connection with mental training was spoken of and a plea was made for the indeterminate sentence. In conclusion Superintendent Collins made a timely argument in favor of a reform in county jails. In this connection he said:

“We who are familiar with the facts know that many convicts are received at the prisons who are morally poisoned and contaminated while awaiting trial in the jails by the intimate association with confirmed and degraded criminals which is permitted in these institutions. This is especially true of the younger class of offenders, who come to the jail having respect for authority and dread of confinement. At no period of their penal term are they so susceptible to external influences. If at this period a practical reformatory influence is exerted upon them, their correction can in most cases be accomplished, but if they are left in idleness and subject to the evil influences of degraded companions their respect for law is soon destroyed, and they become hardened and defiant and accept the theories and ambitions of the confirmed criminals as their own. Thus the man who enters jail in such condition that proper treatment would readily turn him from his criminal course often reaches the prison a most discouraging subject for its reformatory system.

“For the interest of society, as well as the protection of young offenders, the jail system should be corrected. The jail buildings are improved and the prisoners are better fed than they were fifty years ago; otherwise the system remains practically the same. Its conspicuous defects still exist. No chain is stronger than its weakest link; the extensive schemes of penal administration in the several States have their fatally weak part in their jails. Genuine and effective organization in the United States for the salvation of criminals and alleged criminals must take heed of these facts, which are notorious.

“May I now suggest that a committee, to be called, if you please, the Committee on Plan and Scope, be appointed at this session of the Prison Congress to consider the following recommendations:

“First. A rational and uniform system of jail administration.

“Second. A uniform system of education for prison officers.

“Third. A uniform system of education for convicts.

“Fourth. So far as possible, a uniform system of prison discipline.

“Fifth. A uniform system of classification.

“Sixth. A uniform system of parole, and a careful consideration of all other matters that in their judgment would tend to make further reforms in the treatment of the criminal classes.

“This committee to make a report of their conclusions at the session of 1907.”

The Congress, deeply impressed by Mr. Collins’ recommendations, subsequently appointed a strong committee to report at the next meeting on the jail system in the United States.

SUNDAY, SEPTEMBER 16TH

MORNING

The Conference Sermon was preached by the Rt. Rev. William Crosswell Doane, D. D., LL. D., Bishop of the Diocese of Albany, in the Cathedral of All Saints, where the delegates attended in a body. The Bishop's text was Matt. 25:36, "I was in prison and ye came unto me." He said in part: "Almost by an instinctive impulse these words come first to the mind of the preacher at such a service, and by a striking and happy coincidence this service falls upon the Sunday when our Book of Common Prayer appoints for the second morning lesson the chapter which ends with this intense expression of our Lord, containing, I think, the seed principle upon which the noble work of this Association was founded and has been carried on. Last year the preacher took the earthly ministry of our dear divine Lord as the pattern of this work, 'Who went about doing good.'

"I am only supplementing and carrying along the line of his thought when I ask you to think of the divine Master as giving not the pattern only, but the principle of your work. There is no contradiction in the double presentation of our Lord's personality along this as along so many other lines. He is so essentially by His incarnation in our human nature that we bring Him to those to whom we minister in His name and find Him in those to whom we bring Him. And in either of these sides the truth is set forth and enforced that the object of all Christian service, whether it be the work of Christianity in religious teaching, or the work of Christianity in the administration of civic affairs, is not the violent denunciation or vindictive infliction of punishment upon a sinner, but the offer of help and the opportunity of reform. The Prison Reform Association may well claim that it describes and expresses in its name the purpose for which in Christian lands prisons exist. 'He came not to condemn the world, but to save it.' 'The Son of Man has come to seek and save the lost.'

"Curiously enough, whatever technical differences may lie in the use of the various words prison and gaol and reformatory, there is one that stands out as having in its root meaning the very thought of that on which we are dwelling, because the penitentiary is certainly the place where men are led and drawn, through real penitence, to seek and find pardon and peace.

“I am not losing sight of the purpose of imprisonment both to stamp crime as crime and to protect society from the criminal. I am only advocating the thought of reform for which this Association stands. If a man is a murderer condemned to die, then there is the overwhelming duty and responsibility of bringing him to repentance, that he may die forgiven. If he is serving a sentence indeterminate or for a fixed time, then surely the influence and effort of prison discipline must be not to harden him into sullen hatred of law and of all that the law stands for, not in a harbored purpose to revenge himself in some way, when once he is free, upon the society which has condemned him; but to waken in him such a sense of shame as shall force him back to the possibility of self-respect, and bring him to that point of realized wrong by means of which he shall ‘come to himself.’ That is the Master’s own description of the prodigal son. Far as he had strayed from his father’s house, he had strayed farther from his real self, the self of his innocent childhood, the self of his home and surroundings, the self of his true nature, and it was when the true man awakened in him that, coming first to himself, he came next to his father’s house.

“In this recognition of the criminal’s sin there must be enforced the discipline of penalty, and of penalty as punishment, but it must be carefully dealt with, so as in no sense to convey the thought of retribution or of vindictive retaliation. The strides of progress which have been made in the last century and a half under the methods of such real reformers as Howard and Wines (whom, as a boy, I remember very well), and Elizabeth Fry and Dorothy Dix, have, among other things, set the stamp of this idea in the fact that capital punishment, which used to be inflicted for many crimes, is reserved to the one for which it was divinely ordered, and from which, I trust, it will never be taken away, namely, the sin of shedding another’s blood. Meanwhile, more and more, in the selection of wardens, in the appointment of chaplains, in the abolition of the fearful cruelties of physical torture, in the decent sanitation of prisons, we have grown more and more to realize that the condemned criminal is to be treated as a man who needs protection, systematic discipline, the training of the prison, to protect him from himself, to put into him the purpose and set before him the possibility of a better life, rather than to humiliate and crush him into desperation and despair. It is quite true that no amount of legislation and no method of enforcing laws can make a man moral, but it is also true that the law which

defines and punishes sin deters men from the commission of crime, and when the criminal is condemned and sentenced and his punishment begins, only the power of religion can reach him to convince him of his sin, to convert him from his habits, to reach the motives of his life, to change the tendency of his will, to form in him new habits, to give him the spiritual help by which his conscience may be enlightened and his character changed.

“And there are certain human, natural, physical reasons for the right attitude to the convicted criminal which more than warrant us in assuming it as the groundwork and motive of our dealings with him. It is told, I think of an English bishop, seeing a criminal drawn in a tumbril to execution on Ludgate Hill, in London, that he said, ‘There go I but for grace.’ Somehow I know it is true that now and then men whose lives have been surrounded from childhood up to the very moment of their fall with the best influences, suddenly lapse into great sin. We have instances in the last year which have startled and staggered communities, men in places of trust who have betrayed it, and have either been flung down from the position of confidence and honor or fallen themselves, and found in flight or in suicide the fatal termination of what has seemed to be a career of honorable service. I am bound to say a word even for these. I believe the vindictive personalities which have assailed some of these men are in some cases absolutely unjust.

“There ought to be, thank God, there is, more and more in the great movements in our cities, a strong, set effort of prevention, which is far better than cure. The prisons will be emptier when we have reached the root and reason of crime. If we can control the use of liquor and stop at least its excess; if we can stamp out the curse of drunkenness; if we can more and more arrest the degradation of our slums; if we can train up a race of children in surroundings of physical healthfulness, of moral decency and dignity; and still better, if we can instil into them from earliest childhood the principles and pattern of Jesus Christ, we shall have begun, at the right end, the restoration and the reformation of humanity. Meanwhile, until all these movements have ripened into some result, it becomes us to remember from what sources and in what surroundings the grown-up criminal has come; to realize how far we, by our neglect and indifference, have been

responsible for them; and to reach out the helping hand of deep sympathy and pity in the effort to reclaim, to restore and to reform.

“The great revealed truth of universal redemption is full of grace and help. Still more, the truth of individual indwelling of the Christ in us, the hope of glory. It is true that in a way this is a doctrine, a dogma, as people say who think of a dogma as a tyrannical imposition upon their intellectual liberty; but it is truer still that, like many another thing which we call dogma, it is a fact on which depends not merely our holding right faith in Jesus Christ as the God-man, but on which also depend the method and the hope and the value of our dealing with humanity at large or with the individual man. It has in it besides the very highest human hope possible for you and me, that in the great day of eternal decision there shall be for us who have recognized Jesus in those to whom we ministered here the full revelation and manifestation of His glorious God-head, with the word of ‘well done’ and welcome into ‘the kingdom prepared for us from the foundation of the world.’”

EVENING

At many churches of the city various phases of the work of the Association were presented by delegates to the Congress. At the Cathedral Mr. Thomas M. Osborne, President of the George Junior Republic, Auburn, N. Y., spoke on “The True Foundations of Prison Reform”; Mr. George B. Wellington, of Troy, on “The Duty That We Owe the Convict”; and Prof. Henderson, of Chicago, on “Preventive Work with Children.” The latter maintained that the proper training of a child to keep it from becoming a criminal began before it was born. Crime was not a heritage, but criminal tendencies sometimes were. Judge Lindsay, the great enthusiast in behalf of children, had said that the Juvenile court was organized to keep children out of jail, but that now the problem was to keep children out of the Juvenile court. The problem is to get back to childhood, back to infancy. Babyhood determined whether there should be a large or a small criminal class. Place the child from earliest infancy into such a physical environment and under such mental and spiritual influences as will produce the habit of right living.

MONDAY, SEPTEMBER 17

MORNING

The meeting was called to order by President Collins and opened with prayer by the Rev. Thomas D. Anderson. After the appointment of committees and other routine business, the Wardens' Association went into session. In the absence of the President, Mr. N. N. Jones, Iowa State Prison, Fort Madison, his address was read by Mr. Frank L. Randall, Minnesota, who had been called to the chair. The paper was a compact statement of the warden's relation to current prison reform. With reference to prison labor it showed how small a portion of the total product is contributed by prisoners. Regarding the relation of discipline to reformation, the writer said: "Discipline is the medium through which all reform becomes effective. The attitude of the warden toward reform should be sympathetic and receptive."

A paper on "Prison Labor," by the Hon. John T. McDonough, Ex-Secretary of State, was listened to with considerable interest, because Mr. McDonough, as a member of the Constitutional Convention of 1894, had much to do with framing the constitutional amendment wiping out the contract labor system and prohibiting the sale of prison-made goods in the open market. Under the present laws of New York no work can be done by convicts in competition with outside labor. Whatever is made in the prisons of the State must "be disposed of to the State or any political division thereof, or for or to any public institution owned or managed and controlled by the State, or any political division thereof." At the same time every inmate of the several State prisons, penitentiaries, jails, and reformatories in the State, who is physically able, must be set to work. By a strong array of figures and apparently favorable comparisons Mr. McDonough undertook to demonstrate the merits and success of the new system. In replying to the paper, Dr. Barrows maintained that in spite of the law several thousand prisoners in the jails and penitentiaries of the State are supported in idleness.

Mr. John E. Van De Carr, Superintendent of the New York City Reformatory of Misdemeanants, on Hart's Island, read a paper in which he gave an account of said institution and its work. This reformatory, which is

the only one in the United States solely for misdemeanants, is the child of Greater New York's charter. By that charter it became the duty of the Commissioner of Correction "to cause all criminals and misdemeanants under his charge to be classified as far as practicable, so that youthful and less hardened offenders shall not be rendered more depraved by association with and the example of the older and more hardened," and "to set apart one or more of the penal institutions in his department for the custody of such youthful offenders." By an act of the Legislature, passed in 1904, the charter of the reform school on Hart's Island was amended, and the institution was continued and known after January 1, 1905, as "The New York City Reformatory of Misdemeanants." To this "any male person between the ages of sixteen and thirty, after conviction by a magistrate or court in the city of New York of any charge, offense, misdemeanor, or crime, other than a felony, may be committed for reformatory treatment." The time of such imprisonment, which must not exceed three years, but must continue at least three months, is terminated by the Board of Parole, which consists of nine commissioners who serve without compensation for a term of one year. The first three rules under the system by means of which an inmate may work out his release on parole (which is determined by merit marks based on demeanor, labor, and study) are as follows: 1. All inmates enter the New York City Reformatory of Misdemeanants in the second grade. 2. If such inmate shall obtain 900 merit marks he shall thereafter enter the first or highest grade. 3. If such inmate shall violate any rules of the Reformatory, or shall in any way be disobedient or ungovernable, he shall be reduced to the third or lowest grade; and no such inmate shall reënter the second grade unless he shall have obtained 300 merit marks. When an inmate is eligible for release on parole, and is so recommended by the superintendent, he is placed on parole in charge of a parole officer for a period of six months, provided he has a home to go to, or employment whereby he can become self-sustaining. Should he violate his parole at any time, the Board of Parole has power to revoke the same and cause his rearrest and reimprisonment as if said parole had not been ordered. To make the system effective, the spiritual welfare of the inmates is faithfully cared for by the Catholic, Protestant, and Hebrew chaplains of the Department of Correction; mental training is provided for by a teacher from the Board of Education; and six different trade-schools furnish industrial instruction. The results so far have proved very satisfactory, the conduct of over eighty-three

per cent. of those paroled being reported as satisfactory. "Our experience has already convinced us," declares the superintendent, "that the modern ideas on this subject are purely scientific, and not sentimental, and that many sent to prison should first be placed in some reformatory where the class of institution in which they should justly be detained could safely be determined. We also feel that it may become necessary to extend the minimum term of three months to a longer period. A sentence is really not reformatory if the minimum is three months; at least the reformation is but temporary. Permanent reformation requires the teaching of a trade, and a trade cannot be learned in that time, although we have accomplished surprising results in that period. To secure the greatest good to the boy, the trades taught should be those that are best paid, namely, the building trades."

AFTERNOON

The principal address of the afternoon was by Mr. Warren F. Spalding, Secretary of the Massachusetts Prison Association, on "Principles and Purposes of Probation." He said in part:

"The probation system is the natural outgrowth of modern theories regarding the treatment of lawbreakers. The acceptance of the proposition that the State should reform and reclaim the offender led to the establishment of reformatories. Later it was realized that some might reform without imprisonment, even in a reformatory, and the probation officer became their supervisor and custodian. His functions are to investigate cases and report regarding past offenses, if any; general character, home, dependents, etc., and the probability of reformation without imprisonment, and he must visit probationers and help them in the work of self-reformation.

"Probation is better than imprisonment for suitable cases, because it saves the offender from the prison stigma, while it keeps him under restraint, controlling his companionships, compelling him to work and support those dependent upon him.

“The probation officer has custodial as well as supervisory powers, and may surrender the probationer for misbehavior. Probation turns the attention of its subject to the future rather than the past. Punishment deals with one past act. Probation deals with the future—with the establishment of character. It puts the emphasis upon what the probationer must do, not upon what he has done.

“Probation as a means of securing reformation has an excellent record. Punishment has failed in a great proportion of its cases. It is only reasonable that the records of the two systems shall be compared. If the law of the survival of the fittest is to prevail in this domain, it is certain that the use of probation is destined for increase, and the use of imprisonment to decrease, as a method of dealing with those who have broken the laws. It will be adopted more and more generally because it succeeds, while imprisonment will be more generally abandoned because it fails.”

Papers were also read by Mr. H. F. Coates, Alliance, Ohio, on “Probation for First Offenders,” and by Samuel J. Barrows, New York, on “The Organization of Probation Work.” Mr. J. G. Phelps-Stokes, New York, spoke on “The Justice of Probation.” Charlton T. Lewis once said: “We are not dealing with acts, but with actors; not with crimes, but with the men who have committed them.” A man is largely the creature of environment. Too often we overlook the fact that crime is not always chargeable to the individual, but to his surroundings. If punishment is to be just, we must know that he who is punished is justly punished. Some of the prolific causes of a criminal career are evil associates, street training, and bad homes. Do we ask as we should, whether those now in prison had such favorable surroundings as the reputable portion of society? How many children grow up without proper home training! Their parents must go out to hard work to the neglect of the children. There is no play for the child except under evil influences; and in New York alone there are 85,000 children deprived of the benefits of a public school education because of deficient school accommodations. Among those who can go to school, truancy is not uncommon. The recreation which every child needs is found by many in saloons, dance halls, cheap theatres, and other demoralizing places. The stress of hard work and long hours also makes it impossible for many parents to care properly for their children. Do we wonder that under

such circumstances only harmful influences come to them? Punishment is just only in proportion to culpability; and yet how many have no opportunity to learn what is right or wrong!

The conditions to which first offenders are subjected in many prisons are simply appalling. Hundreds are thrown in with the vilest beings and the most hardened criminals, and are, in addition, obliged in the majority of prisons to endure a living death by reason of the most unsanitary surroundings. It is horrible to sentence a man, woman or child, not only to moral degradation, but to a physical death as well. Imprisonment as a corrective and deterrent is a failure. Punishment can have but two justifications: the correction of the offender, and the protection of society. Probation, on the other hand, at least results in making one refrain from such criminal acts as will send him to prison.

EVENING

The speaker of the evening was Mrs. Maud Ballington Booth, of the Volunteers of America, who delivered a most eloquent and sympathetic address on "The Hopeful Side of Prison Work." Mrs. Booth began her work among "her boys" behind the bars ten years ago, at the time of the division in the Salvation Army, which resulted in the formation of the Volunteers of America. To-day she is everywhere known among prisoners and ex-convicts as "The Little Mother." Mrs. Booth said in part: "I am not here to instruct wardens and chaplains, nor have I come to represent myself, but the work of the organization for which I stand. I see before me another audience to-night, namely, those behind the bars. All I know regarding this work is from within the walls, and I speak, therefore, from the standpoint of the prisoner. I was always told that the task with criminals was a hopeless one, but I have learned to know better. People who talk like that have never been behind the walls of a prison. The theorist looks upon convicts as men who are generally unredeemable. Not so the wardens and chaplains and other prison workers, who have had practical experience. No man or woman would be any good among prisoners without hope. Where there is life there is hope. I do not forget the crime or the stain, and am not a sentimentalist regarding the reformation of criminals; but I firmly believe that no one has fallen so low as to be absolutely beyond redemption. Many

of those behind the bars have from earliest childhood never known anything of human or divine love; but have only been cuffed about in the world. Bring these the touch of sympathy, and tell them something of the Father's love and of the Saviour's power to save, and you again bring hope into their lives. This must be the foundation of our work *within* the prison; and where those who have served their time come out, it is love again—mother love, if you please—that must direct their course. In dealing with the convict, our first endeavor must be to enkindle new hope within his heart; and toward the ex-convict the public must assume a better attitude. Finally, if we leave God out we shall not succeed."

TUESDAY, SEPTEMBER 18

MORNING

This day of the Congress had been set apart by the New York State Prison Department for an excursion to beautiful Lake George. At 8.30 o'clock over three hundred delegates left Albany by special train. On arrival at Lake George the steamer *Horicon* was boarded, and after a sail of several hours on the lake, the excursionists were landed at "The Sagamore," where a basket luncheon was served, after which the meeting of the Chaplains' Association was held, the Rev. William J. Batt, D. D., of the Massachusetts State Reformatory, in the chair.

After a brief paper by the Rev. W. E. Edgin, Chaplain of the Indiana State Reformatory, Jeffersonville, on "Soul-Winning in a Reformatory," and an address by Prof. Edward Everett Hale, the president introduced Mr. Joseph F. Scott, of the Elmira Reformatory, whose admirable paper on "The Chaplain from the Warden's Point of View," we here reproduce in full:

"Because prisoners are men, they have the same impulses, motives, hopes, and aspirations, and are susceptible to the same influences and amenable to the same forces as other men, though possibly in a less degree. Because some men are prisoners they need the same inspiration, faith, strength, and courage that other men find themselves in need of.

“In the prison of which I am superintendent, there are burglars, pickpockets, and thieves of every description. There is no law on the statute books that has not its offenders there, and they are thought of and spoken of by people in general as such. But when the parents of one of these write me, they say, ‘My son’; or if the brother or sister write, they say, ‘My brother’; and I believe if it were possible for me to hear the words of the Father in Heaven, concerning one of these, they would be, ‘My son,’ or the words of Jesus, ‘My brother.’ Should not our words be the same?

“If I had a son of my own I should insist upon such rules of diet, sleep, and exercise as would insure to him a healthful body and a good constitution, such education, necessary to a well-disciplined mind, such works or pursuits to assure success in life; such disciplinary and moral training as would build up a stable character; all to the end that his place in life would be that of a useful citizen. The need of the prisoner and the prison discipline brought to bear upon him need be nothing more, and should be nothing less than this. He needs physical development, mental quickening, industrial training, discipline and moral instruction, if he is to be returned to society a self-sustaining and useful citizen; and no prison is doing its proper work that does not in some way afford means for these essential elements of discipline.

“The moral instruction is the especial work of the prison chaplain, and he should be given that freedom of action and breadth of scope to make his work efficient. I believe that Christianity is the greatest moral force in the lives of men to-day, because it has humanity as the basis of its ethics. It has come down through the years as a forming, transforming and reforming force in the lives of men, and I believe it is to go on through the ages until selfishness shall have been uprooted, and men brought closer and closer together; when we shall love our neighbor and be willing to work for him as for ourselves, and will do unto others as we would be done by; when we shall live in one great fraternal organization; when wars, and robberies, and strife shall cease and poverty shall be no more; when the strong shall carry the burden of the weak, and succor the unfortunate, and men will live together in brotherly love, under a Christian socialism or in the New Jerusalem, or such designation as you may please to give it. This force, which has accomplished and is to accomplish so much for the world, we

cannot deny a place in transforming the lives and characters of prisoners, to that of upright living.

“The prison chaplain, in his work among prisoners, should thoroughly believe that these great Christian forces which have done so much for the world are applicable to the men under his charge and are as efficient in their lives as in the lives of other men; and any Christian clergyman, desirous of helping his fellow men and entering into the service of the Lord and humanity, and of placing himself where he can do the most good, should not hesitate to accept a prison chaplaincy; and a call to such a place should be in his mind equal to the call to one of the best churches in the land.

“It is not my purpose to give a detailed outline for the work of a prison chaplain. No two men can perhaps be successful and do their work in the same way; but every person connected with the prison, be he superintendent, warden, or chaplain, or other officer, should seek every inspiration and good example and ideal within his possibilities, and then simply be his natural self in dealing with the prisoners’ needs.

“When I was superintendent of the Massachusetts Reformatory at Concord, it was the custom there to avail ourselves of the services of the students from Andover Theological Seminary. One student, fresh from his work in the seminary, came into my office one day and asked me what he should do in the prison. I told him that if I were to get some one to do what I wanted done, I would probably get some one else, but that I expected him to go into prison, mingle freely with the prisoners, and find something, some place where he thought he could be of use to them, and give those qualities in himself that he thought would be of the most help. And that is what I would say to a prison chaplain entering the work. Where one is strong another may be weak, and each should work along those lines where he himself feels that he can do the greatest good. The compensation of a prison chaplain should be sufficient to command the services of clergymen of high attainments, and to support themselves and families in a comfortable way. And never should a chaplaincy be looked upon as a place for a broken-down clergyman, or one who has failed in other fields of activity. The chaplain should be given, as I have previously said, sufficient latitude and freedom of action in the prison to carry on the work in such lines as he

himself feels that he can be of the greatest service. Therefore, the superintendent, or warden, should not place upon the chaplain such routine duties as will interfere with his doing this. It is recognized by all that the Sabbath is the special day for the chaplain's work. I believe that we should go further than this, and set aside to him some portion of each day for such religious work as he deems best. He should not be burdened with such work as supervising inmates' correspondence, the library, teaching school, or the many routine duties which are foisted upon him in many instances, unless he feels that they may be avenues through which he may do his best work.

“If there was one injunction of the Saviour which has given more impetus to Christianity in the world than another, it was His last, ‘Go ye, therefore, and teach all nations,’ or, as found in the other gospel, ‘Go ye into all the world and preach the gospel to every creature.’ I believe this injunction is especially applicable to prisoners, and that the chaplain, first of all, should be a teacher, and his intercourse with the prisoners should be in the form of teaching. Most prisoners are without the truth, and they need to be instructed in the truth, and my experience is that most of them are desirous of learning the truth. And I believe that no chaplain ever failed to interest or impress prisoners when he preached to them a sermon teaching them the simple gospel. I have never failed to see, in a prison chapel, the attention of the men arrested by the simple reading of the gospel, or anything pertaining to the life or teachings of Jesus Christ, or the explanation, by the chaplain, of what those simple truths and teachings consist in. I believe that any chaplain makes a mistake when he goes before his congregation of prisoners with other subjects than the simple gospel, if he thinks thereby to awaken greater interest in other ways.

“Phillips Brooks, when he used to visit the institution at Concord, it was said, never varied his sermons one jot or tittle in presenting them to the prisoners of that reformatory, than in giving them to his cultured congregation in Trinity Church, and he never failed to instruct, impress, and move his congregation of prisoners as no other man to whom I ever listened. And that leads me to the point that I believe that all religious services in a prison should be carried through with the same care on the part of the clergyman, and with the same dignity with which he would conduct the services in any church. The ritual of the church service always appeals

to prisoners. The services of the mass, or the ritual of the synagogue, never fail in receiving the reverent attention of the devotees of those faiths; and my observation is that prisoners always respond to those services in which they themselves are largely participants. Congregational singing, responsive readings, repetition of Psalms and the Lord's Prayer are usually entered into with interest and satisfaction.

“The prison chaplain should be keen in his appreciation of human nature, in dealing with the individual prisoner, that he may see the good that exists in each prisoner with whom he comes in contact, and work upon that side of his character. Humanity is much alike the world over. Race and condition have not so much influence upon the characteristics as we sometimes believe. In the modern American prison will be found prisoners from nearly every nationality under the sun. Their methods of evil are about the same, and they all respond to the same influences, and are actuated by the same motives, each as the other; and the prison chaplain who has learned this, and has learned that there is always something in every prisoner which he can draw out and develop, is well on the road to successful dealing with them. It is not so much the work of the superintendent, warden, or chaplain, to make over a man into something else, as it is to develop him along the lines of his better self.

“When the Saviour called the fishermen, Peter and Andrew, to be his disciples, he did not say to them, ‘Follow me, and I will make you into great orators, or great preachers,’ but, ‘I will make you fishers of men.’ So, when we approach the prisoner, we should not ask him to be something different from himself, but should try to bring out and develop his better self; by holding before his vision the ideal Man, which is Jesus, and the ideal society, which is Christianity in its perfection.”

EVENING

The evening session was again held in the Senate Chamber of the Capitol. The first address was made by Mr. Frederick G. Pettigrove, Chairman of the Massachusetts Board of Prison Commissioners, on “What a Central System May Do to Promote the Efficiency of Prison Methods.”

“A world-famous essayist and statesman said that a complete theory of government would be a noble present to mankind, but he added, it is a present that one could neither hope nor pretend to offer. We are forced to remember this limitation when we examine the various systems of prison government and attempt to suggest remedies for the deficiencies in them. I shall try to show that in whatever way the prisons are governed there are certain reformatory methods and agencies that can be made much more effective and available by the aid of a central system than by being left entirely to local administration. I shall make no attack upon any system, because it would be unjust and ungracious not to remember the great service that has been rendered to the State by the able and philanthropic men and women who have devoted their services to the prisons, and have striven to lift them from mere places of detention to a condition of high public service.

“If all the corrective methods that are now stamped with the approval of public sentiment could be maintained to the best advantage in a single prison, there would be no need of any central authority. It could not be contended that a general board would be any wiser in appointments than the local boards of management. Nor could there be any larger or more humane interest in the affairs of a particular prison, than is shown by the supervisors who have only one prison under their charge. But it would be manifestly impossible, in the larger States at least, to include in a single establishment all the various agencies that are needed for the discipline, the training and the treatment of prisoners; and it is therefore essential that different places should be provided to furnish opportunities best suited to the capacities and the needs of the widely differing individuals.

“The managers of one prison cannot command a knowledge of all the prisons as well as a central board, and if the methods that are now employed are to be used for the greatest good, and to be made available for the largest number of offenders, there must be some general authority to rearrange and reassign prisoners after they have been committed.

“I have no intention here of proposing that the State should take absolute control of all the penal institutions, or even that the authority of all boards of management should be measurably disturbed; but only that some central

board should so far possess authority over all the penal establishments as to be enabled to make a rearrangement that would promote efficiency of effort.

“In order to show how such a degree of centrality might be sufficient for large reforms let me outline briefly what I believe would be the best method of classification of prisoners if all suitable facilities could be given by the legislature:

“I would recommend the establishment of one receiving prison for all persons convicted of serious crimes and sentenced to hard labor; in this place prisoners would be held under continual observation for a period long enough to allow the authorities to decide where the prisoner would apparently be likely to receive the most benefit, or where he could be kept with the most advantage to the State.

“As accessories to this place I would provide departmental prisons, in each of which some particular element of instruction or discipline or treatment should be brought to the highest possible degree of efficiency, such as schools for the illiterate, the manual-training school and schools for trade instruction.

“Another department should be assigned to those who are mentally weak, so that they could be put constantly under special guardianship. There are in the prisons, as we all know, many persons who, while not so far below the normal intelligence as to warrant the experts in declaring them to be insane, are nevertheless incapable of performing any useful work or of taking any benefit from prison agencies. In most States provision has been made for the removal of prisoners who are actually insane to an asylum specially provided for that class; but so far there has been no similar establishment created for the safe detention of prisoners who are found to be so far deficient in intelligence as to need the sort of treatment that is given in the schools for the feeble-minded.

“Another humane department would be a hospital prison, an establishment that should combine the needed safeguards for custody with all the essential features for the most scientific and skillful treatment of the different ailments. To be sure it would be necessary to maintain a small infirmary in

each prison for emergency cases, but all cases requiring long and continuous treatment would be removed to the hospital prison.

“The last stage of all in such a plan as I outline should be a prison where the guardianship over the prisoner would be relaxed by degrees, so that he could approach his freedom in such a way as to regain some degree of self-reliance.

“To make the general plan of a classified prison system harmonious and effective, the particular place of imprisonment should not be unalterably fixed at the outset. In effect to-day the court in Massachusetts does not absolutely determine the place of imprisonment. The central board has the power to make transfers from one prison to another, with the single exception that no person can be put into the state prison from another place.

“I have seen in other places, however, many prisoners who manifestly belonged in the state prison.

“It would be needless to recite cases of inequitable sentences that show the need of classification. As a type of many others I mention one instance where, through lack of knowledge of the prisoner’s antecedents, a justice sentenced to the reformatory a man who had been six times under imprisonment, including a term in the state prison, and as far as one human being can judge of another, had shown himself incapable of amendment or unwilling to accept the means of reformation.

“Information that may be immediately available to the prison authorities when the prisoner is committed, so that they can assign him to his fit place, is in most cases lacking when the prisoner is before the court. The needed adjustment of prisoners I think could be made by a central authority having all places within its purview, after conference with the prison officials.

“In what other ways can we make centrality help a prison system? We can do it by requiring, as many States have done, that all reports of prisons shall go to a central office so that there shall be available to the central board the needed information in regard to the prisons. We can do it by the establishment of a more effective method of registration, so that there shall

be available for the guidance of the transfer board all the records of prisoners, whether obtained in one State or another.

“Under the same authority with the bureau of registration and identification, all the data possessed by that department would be accessible to the agent who was seeking to discover how far it might be practicable and useful to assist a prisoner at liberty. A central registration office would in the end yield a large return to the State by securing a comprehensive oversight of prisoners on parole. In the central office in Massachusetts we endeavor to keep a record of all prisoners at liberty from the prisons under our supervision. This, to be sure, is not always easy to do, because names are readily changed and it is not difficult to conceal identity. The only reliable method of following up the prisoners at liberty is to maintain a system of identification based upon the plan that does not rely on names, or upon any data that is subject to change.

“What the scheme of registration has done for this State and for other States cannot now be measured, but the interest that has been excited in this subject and the information that has been spread from the central office must prove invaluable to the police and prison officials of the entire country. When all the States adopt this plan it will not only be difficult for a paroled prisoner to evade his obligations to keep the terms of his release in his own State, but he will find if he returns to evil practices in another State that his record will be readily brought against him.

“All that I have said so far has seemed to apply mainly to persons convicted of felonies, but I intended that there also should be comprehended in the scheme a large number of misdemeanants, who need generally the same sort of correction and training as felons.

“There is one class of misdemeanants, however, which I would exclude as a rule from any elaborate prison system, although the place for their detention might be made one of the departments of the plan I have described, and that is the large number of persons committed for drunkenness. Most of these have passed beyond the age when they would be the best subjects for an industrial reformatory. They have no criminal instincts, are merely social disturbers, and what the State does in the way of their correction should be different from the means employed in the care of criminals. And the persons

committed for drunkenness can be dealt with in a better way than now prevails if they are drawn into larger groups where fitting employment can be given; and this arrangement would need the intervention of a central board.

“Under a well-organized and thoroughly equipped system, with such a degree of centrality as I have indicated, all the beneficent methods of the prisons would be sustained and strengthened.”

The second address of the evening was by Dr. Frederick Howard Wines, on “The Prisons of Louisiana.” Residence in the South and an intimate acquaintance with Southern people and Southern prisons, gave the utterances of Dr. Wines authoritative value. The prison question in the South, he said, is almost exclusively a negro question. The greater proportion of crime in the South is committed by negroes. Hence most of the prisoners are negroes. The negro prisoner is a distinct problem. The methods we apply to white prisoners are not applicable to him. The religion of the negro, for example, is altogether emotional and has little connection with morality. As to education, the Southern people do not greatly favor the education of the negro. A partly educated negro thinks he belongs to a select class and must no longer work. As to the question of labor, he is not fitted for indoor work, nor wanted by the industrial classes.

As conditions are in Louisiana, I can think of nothing better than the large plantations on which the convicts are employed. The barracks are absolutely clean and sanitary. There are no chains. The guards are unarmed. After breakfast the prisoners go to the cotton and sugar fields, accompanied by armed guards and hounds. There are few escapes and very little punishment. Hospital and physician are provided. All the convicts are well fed, and at the close of the day’s work all must take a bath. As the labor is steady it is more profitable than that of the free man. All the earnings go to the support and improvement of the prisons and prisoners. The lease system is gone in all the counties but one. Baton Rouge has the only prison of the old style, with walls, etc. Camps are now the thing, on plantations. Since the abolition of the lease system, and the adoption of State control, the health of the prisoners is much better.

A third address by Mr. F. B. Sanborn, Concord, Mass., on "Prison Reform and Prison Science," was largely a review of the results accomplished in the past forty years, and reminiscent of the many eminent men associated with the movement since its inception.

WEDNESDAY, SEPTEMBER 19

MORNING

The session of the Physicians' Association, held this morning, was most interesting, and was marked by some notable features. The President, Dr. S. H. Blitch, Ocala, Florida, presented a paper on "The Open versus the Close Penitentiary System of Handling Prisoners," in which he took strong ground in favor of the former, especially in the South. He defined the "open" penitentiary system as that mode of social restraint according to which the prisoner sentenced to hard labor is required to perform skilled and unskilled service in fields, woods, and surface mining, and in such industries and occupations as do not necessitate his daily cellular or circumscribed confinement, as is the case under the "close" system. He claimed that in spite of criticism, the "open" system, wherever climatic conditions make it practicable, is far more conducive to the mental and physical rehabilitation of the convict than the "close" system. In the South, especially where the vast majority of prisoners are negroes who have been accustomed to life in the open air and to outdoor employment, the confinement in a "close" penitentiary would be most detrimental. The open-air system puts these men at work under conditions to which they have been accustomed from youth up, and the results demonstrate the wisdom of the plan.

In the discussion which followed this paper, Dr. Barrows said that many penologists felt that the Southern system had many advantages, but that other industrial and reformatory elements should be added. Dr. Wines saw an immense advantage in the Southern method, and claimed that Northern prisons would find it very beneficial to have farms connected with them for the outdoor employment of convicts.

The paper on "Prison Sanitation," by Dr. W. D. Stewart, West Virginia Penitentiary, Moundsville, was followed by that of Dr. S. A. Knopf, of New York, on "The Tuberculosis Problem in Prisons and Reformatories." The presentation made by this eminent specialist on tuberculosis was probably the most exhaustive on this subject to which the Congress ever listened. This very valuable paper, any condensation of which would do it injustice, is published in full in the *New York Medical Journal*, November 17, 1906, to which the reader is referred.

Dr. J. W. Milligan, Indiana State Prison, Michigan City, read a paper on "Mental Defectives Among Prisoners," of which the following is a synopsis: Where reformation, not punishment, is the aim, a just estimate of the prisoner's mental state is essential. Without this the indeterminate sentence cannot be successful. Communities as well as courts too frequently overlook mental defect as an important element in crime. Too many prisoners on admission are insane, epileptic, or feeble-minded. Epilepsy is not an infrequent factor, especially in atrocious crimes without motive, and overlooked because *not of the pronounced type* popularly considered characteristic of this disease.

Indiana prison records show among the defectives, a percentage for murder *three times*; for murder, manslaughter, and rape, *twice*; but for larceny, *two-thirds* that of the average for all classes. On admission, forty-four per cent. admit mental defect or criminal record, in the personal or family history. This tainted influx, and the fact that defectives are not paroled, explains why twelve per cent. of our population is insane, epileptic, or feeble-minded.

The psychosis are chiefly degenerative in type. Insane among prisoners are not especially difficult to manage; no harsh measures are ever justifiable. Indiana has as yet no institution for insane criminals; it needs one badly. A ward in the prison hospital gives good results, though far from ideal. Insane criminals should be judged in the light of modern psychiatry, and their rights and the safety of society carefully guarded.

AFTERNOON

Mr. C. W. Bowron, Superintendent of the Wisconsin State Reformatory, Green Bay, presented the Report of the Committee on Prevention and Reformatory Work, in a paper entitled, "Reformatory Sentences and Discharges," which concluded with the following propositions:

1. That the authority to transfer prisoners from the reformatory to state prison is an essential safeguard to the successful management of a reformatory; and this power on the part of prison officials has been abundantly upheld by the courts.
2. That the so-called indeterminate sentence has been repeatedly held valid, but apparently upon the construction that it is a definite sentence for the maximum limit. It is therefore a misnomer.
3. That the fixing of a minimum period in the indeterminate sentence is illogical, and detrimental to reformatory purposes.
4. That the power of parole is purely an administrative function exercised in the establishment of a prison regulation, the validity of which has been upheld by the courts; and that the determination of parole should largely if not wholly rest with the principal officers of the institution.
5. That the parole system does not depend upon the so-called indeterminate sentence, or any other form of sentence, but stands apart from it as a separate and distinct reformatory element.
6. That a definite and uniform sentence fixed by statute, subject to modification through the legal powers of the administrative officers to parole and discharge, is not inconsistent with reformatory purposes, and in some respects is an advantage to reformatory management.
7. That final discharge after a suitable term of probation on parole is a just and essential feature of the merit system, in which the pardoning power should coöperate with the reformatory officials.
8. That the indefinite sentence does not exist, probably cannot constitutionally exist, possibly ought not to exist, and certainly would be the object of severe criticism if it did exist.

9. That a central bureau of identification operated by the general government is so essential to the proper ends of justice that its establishment would mark an important advancement in our criminal jurisprudence.

“Methods of Reformatory Administration” was the subject of a paper by Mr. W. H. Whittaker, Superintendent of the Indiana State Reformatory, Jeffersonville. Mr. Whittaker claimed that in many institutions methods had not kept pace with advancing civilization. Ideal reformatory management must, first of all, have a solid foundation to stand upon. Said foundation consists of the men in charge of an institution. These, from the superintendent down, should be men of broad intelligence, good morals, and clean habits, who thoroughly believe that they are their brothers’ keepers, and who, in the discharge of all their duties, will constantly have in view the reformation of the prisoner. No good results can come from physical punishment or the employment of such methods as humiliate the prisoner. All methods should aim to secure the harmonious training of the heart, the head, and the hand, and should have for their one purpose the building of character.

In a paper on “The Delinquent Girl,” Mrs. Lucy M. Sickels, Superintendent of the State Industrial Home, Adrian, Michigan, pointed out that the real delinquent in most cases is the parent. The delinquent girl is not born so. She comes into the world with all the winning graces of babyhood; but when she reaches the years of girlhood, she is allowed to have her own way and to run wild. The mother is perhaps so busy attending missionary and temperance meetings, endeavoring to save others, that she has no time for her own daughter. If the girl has no mother, or a widowed mother, who, in order to support her little family, is obliged to go out to hard work day after day, until she becomes nervous, impatient, and petulant, an equally unfortunate situation again presents itself. Or parents are constantly quarreling, until divorce stalks in, breaks up the home, and sets the children adrift. In eight cases out of ten, ill temper and divorce in the home are the cause of delinquency. Delinquency or incorrigibility is only another name for parental neglect. What we want are laws to protect the children and punish the delinquent parent, for this is the root of all the evil we are striving and contending against.

Mrs. Sickels outlined the methods followed in the institution which she directs. "We go back to the first home principles, a mother and a mother's love. A manager or mother is at the head of each family home, of which we have eight, each family having a kitchen, dining room, and laundry, just as complete in itself as you are from your neighbor. Each family cooks its own food, makes its own bread, and does its own laundry work. Each girl has a nice little room all to herself, in which is a single bed covered with a clean white spread, a pretty pillow sham on the pillow, a dresser, a mirror, a rug and a chair. Each room has a large airy window. The girl may beautify the walls and dresser according to her own taste and skill.

"The first requisite for a girl as she enters the Home is *occupation*, not work only. It may mean work, but instruction is given along all lines most necessary and useful to every woman in order to fit her to be a housekeeper and home-maker." A chapel, in which two services are held each Lord's Day, a schoolhouse and graded school with eight teachers, a hospital and trained nurse, a sewing school, a cooking school, a dressmaking department, a greenhouse, and an orchestra and brass band composed of girls, form part of the equipment. There is no wall or fence around the Home, but a clear open space and beautiful lawn, with walks and flowers, shrubbery and trees. The results obtained have been most satisfactory, at least seventy-five per cent. of the girls so far received having turned out good, true women, many of them being devoted wives and mothers.

EVENING

Mr. Alexander Johnson, General Secretary National Conference of Charities and Correction, Indianapolis, Indiana, spoke on "The Reformation of Jails." Many county jails, he declared, are a blot on civilization. Should this be the case when we seek the reformation of the prisoner? Reform has begun at the top of the prison system, but the jails have made little progress upward, and a great number deserve to be called "schools of vice." What is the remedy? The physical condition of the county jail must be improved. Each prisoner should be separately confined. The fundamental error is that the jails are used for two dissimilar purposes: for men awaiting trial, and for men who are sentenced. The two do not belong together. I have seen these two classes together in the same cell, and treated perfectly alike. When a

man has been convicted he no longer belongs to the county, but to the State, and should be sent to a State institution. Then the jail would remain only as a place of detention for those awaiting trial. But why the State? Because the county would hardly be justified in going to the expense of supporting a real work-house. Another reform imperatively needed is speedier trials. It is infamous to hold a man in jail for months awaiting trial. "I hope the time will come when the question will be, 'What kind of a man is this, that we may fit him for society.' When we make our prisons hospitals for the moral reformation of men, we will realize that the jail will be the place in which to begin."

"The Juvenile Court: Its Uses and Limitations," was the title of a paper by Dr. Hastings H. Hart, Superintendent of the Illinois Children's Home and Aid Society, Chicago. The juvenile court is an evolution. Some twenty States have juvenile court laws—all within about six years. This evolution is still in progress, and the matter still in its infancy.

The juvenile court is founded on three great ideas: 1. The value of the child for its own sake and for the community. 2. The abandonment of the *lex talionis*, *i. e.*, the infliction of a punishment commensurate with the wrong done. This is impossible as well as a wrong. No man is wise enough to adjust the punishment accurately to the crime. 3. The recognition of the responsibility of the mother State for the children, especially for the erring and neglected ones.

The first essential feature of the juvenile court is the breadth of its scope: it deals with delinquents and dependents. The second is the character of its proceedings. "What is the best possible thing to be done for the good of the child?" This is the question which the juvenile court endeavors to solve every day. A third feature of the juvenile court is that it places the child in such hands as will do what is best for it. Having such a high character and such noble purposes, no jurist is too eminent to serve as a juvenile court judge. Another distinctive mark of the juvenile court law is the probation officer, who is the very heart of the work, and who not only learns to know the child in the home, but also represents it in the court. Finally the juvenile court recognizes the great fundamental principle that the home and family, when properly constituted are the great molders of character.

THURSDAY, SEPTEMBER 20

MORNING

From the proceedings of Thursday morning the following admirable paper by Mr. C. E. Haddox, Warden of the West Virginia Penitentiary, Moundsville, is selected and reproduced in full:

SOME ELEMENTS OF PRISON DISCIPLINE

Old Noah Webster, in that charming book of his entitled "Dictionary," of which Bill Nye says his chief criticism is that it changes the subject too often, gives the following definition of discipline:

"Education, instruction, cultivation, and improvement; comprehending instruction in arts, sciences, correct sentiments, morals, and manners, and due subordination to authority."

These are not all the elements Webster says constitute discipline, but they are quite enough upon which to base a paper, and it is well enough to keep this definition in mind, especially for such as may have the impression that discipline consists solely and alone in administering punishments for real or imaginary, deliberate or unintentional, breaches of good conduct.

To the unthinking, the sole object of imprisoning a convict may be regarded as the making him suffer for the crime he committed, and that the judge in imposing sentence should calculate how much suffering will be commensurate with the crime, and adjust the sentence accordingly, the prison authorities then taking hold of him, holding him in "durance vile" for the period of his sentence, keeping him as quiet and orderly as they can, and when his sentence has expired, discharging him without further concern or responsibility for him or his future.

THE SCOPE OF DISCIPLINE

Discipline comprehends in its fullest scope absolutely everything that has to do with the convict, as to his training physically, morally, intellectually, and spiritually, and embraces in its application every agency that has to do with his development as a laborer, his advancement as a student and a thinker, his uplifting morally and spiritually, and his complete and perfect rounding out as a man.

It does not refer alone to the agency of the dark cell, the strap, the taking of good time, the bath, the ball and chain, and similar devices; and in a properly conducted, well-ordered, and painstaking institution, these agencies are far and away the smallest, least used and least effective of all those which make and promote this thing called “discipline.”

In a rightfully planned and properly manned prison, the officers maintain much the same attitude toward the heterogeneous population there gathered—most of whom are children in mental attainments, children in moral culture, children in industrial bent—that a parent occupies toward his child. The motive, the hope, the desire, the object, the plans, and the efforts should be much the same, changed and modified only as the conditions necessarily demand a modification of plans.

The thoughtful and intelligent parent ponders and studies about the future of his child. He knows that he must fit and prepare him for the solemn duties of life, and upon the preparation or lack of preparation he gives him, the discipline or the lack of discipline the child undergoes, will depend that child’s future welfare or misery.

If the parent is wise he carefully arranges for the child’s physical well-being, he plans for his mental cultivation and discipline, and provides systematically for proper environments and training for his moral and spiritual growth and strength. Nothing is left to chance, little to precept, much to example, and the use of the rod or other correctional methods or devices, is an obvious confession of a failure on the part of the parent to take all the necessary care and precaution in training or drilling the child. No child ever needed physical correction at the hand of its parent, that the parent was not also some to blame in neglecting precautions that would have obviated this necessity.

Rev. Samuel J. Barrows, to whom prison people are under so many lasting obligations for his invaluable contributions to prison literature, said no truer thing than when in his admirable address at Kansas City, in 1901, on “Jesus as a Penologist,” he said:

“The ideal discipline is that which educates and strengthens the will without breaking it, and which develops a man without crushing him.”

LABOR AS DISCIPLINE

The first and prime requisite to discipline is a proper labor system that calls for a reasonable amount of satisfactory, productive, remunerative labor from every convict fit to labor. It is altogether the greatest problem that confronts any prison, and is most vital.

Idleness in prison is grossly wasteful, utterly uneconomical, terribly demoralizing, and prevents almost entirely all plans for a regimen that looks to discipline. For those in health there should be no wasted hours at any time or any place in prison.

A score of idle or partly idle convicts can do more mischief, subvert more discipline, destroy more regularity and system than a regiment of men kept at proper, legitimate employment. So the key to discipline is a labor system that embraces in its scope every person in prison.

To devise a system of labor for an institution that will keep everyone sufficiently employed and underwork none (for strange to say, in practice, the prison that overtaxes convicts probably does not exist), is the hardest problem, requiring the most labor, care, and attention that could possibly be imagined, and means that the warden who accomplishes it and continues it will be the most severely taxed of all. It is not the convict that is likely to do an honest, just day's work, but the management who undertake to see that this most vital and salutary agent of discipline is always in full force and effect.

THE CONTRACT SYSTEM

I have no sympathy with those who inveigh against contract labor in prisons. A contract system in which the State receives the proper compensation for the labor of convicts, and the convict receives a just compensation for surplus work, a system which eliminates the abuses formerly found in contracts, a system in which the government, control, and treatment of the men is in the hands of the prison officials only, and the amount and the kind of labor is adjusted by the warden only, may be the best practicable economic system.

The abuses formerly chargeable to the contract system, and possibly chargeable now in sections, are not necessary, and existed and exist only because prison officials permitted them or fostered them; and instead of abolishing the system, men should have been substituted who would prepare a proper contract, obtain the right compensation, secure rational treatment for the convicts, and get just conditions generally, and have the invaluable experience of expert manufacturers to teach the men deft and skillful labor at something they know becomes a factor in the world beyond the walls.

Shall the meat packing and producing business be destroyed because great abuses have recently been unearthed, or shall it be reformed and corrected?

Shall the oil industry be wiped out because an undue share of the benefits are absorbed by a few, or shall the conditions be changed, the wrongs be righted?

Just think of the consistency of the people who rail at the contract system in prisons, but view with complacency the spectacle, in the East Side of New York, of almost countless thousands of children of four years of age, and sometimes younger, working in basements fourteen hours a day, making paper bags at four cents per thousand; or three-and-a-half-year-old children making artificial flowers on Mott Street, at eight cents per gross! Twenty-three thousand licensed, not to speak of the unknown thousands of unlicensed, tenement houses (home) factories in the city of New York, of the State of New York, which sternly forbids any form of contract labor in prison!

Far be it from me to criticise the State account system, ideal, utopian; but the superintendent who can combine the business qualities necessary to run successfully and economically the factories with the executive qualifications requisite for the other duties of prison governments, is certainly a prodigy, and cannot often be found.

THE REFORMATORY

Neither have I anything to say against the reformatory system of manual training, so called, which builds only to destroy again, except to regret that the only way the State provides manual training for its young men is through the passport and credentials of crime.

THE HABIT OF LABOR

It is not so necessary that a convict shall know a trade, in these days of machinery and constant and continual changes in the methods of manufacture, as it is that he shall have developed in him habits of industry and the willingness to work at what he can do. The great trouble with the average convict is, that he not only does not know a trade, but that he has not been drilled in any kind of labor, and prefers to obtain his substance from the labor of others, by surreptitious, unlawful and unjust means. The *habit* of labor is what he needs more than the specific kind of work.

As Superintendent Brockway said many years ago: "Only motivelessness is the seat of incorrigibility. To discover or create a want is to find a motive. Given a motive, you may direct a habit. To form a habit is to create character. Habit is the school of conscience. Conscience and habit reinforce one another."

Let us have the *habit* of labor rather than the expensive training in trades, which in countless thousands of great industrial establishments will be of no additional value.

LITERARY DISCIPLINE

Next to education in labor, I place as the most important factor in prison discipline the development of the mind through the medium of the various agencies that may be employed for that purpose, not forgetting that labor develops the mind as well as the muscle.

An overwhelming majority of the inmates of any prison are densely and grossly ignorant, and mentally deficient. The polished, scholarly, shrewd criminal is a creature of fiction, not of fact, the exception, not the rule. The average convict is a living example of Horace Mann's aphorism, that "ignorance in this country is a crime."

THE PRISON SCHOOL

The convict's mental discipline can be accomplished in many ways, one of which should be the prison school. The work here will often have to be of the most elementary character. This work should not be merely perfunctory, but should have the most careful attention and consideration. The eagerness with which even comparatively old men undertake to master the simplest primer is one of the pathetic but encouraging aspects of prison-school life.

As the school will probably have to be an evening school of but few hours' duration, the course of study will necessarily have to be comparatively brief, in order that all inmates needing its help may have their turn.

But the brief term in school should be supplemented by a course of reading and study in the cells, or elsewhere, which should have the same attention, the same systematic oversight and encouragement that the work in the school had. This serves a twofold purpose: first, to drill and discipline the minds, furnish them with concrete information; and second, to fulfill a vital necessity in proper prison discipline, the continual occupation of the subject in his waking hours, with labor, study or proper recreation.

The writer recalls reading recently with some curiosity and interest a stricture written some nineteen years ago on the methods of the Elmira Reformatory referring to the study in the cells of "The Prologue of the Canterbury Tales," "The Tragedy of Hamlet," Emerson's "May Day," Browning's "Paracelsus," and similar literature, and the critic stated that if

the convicts are to remain in prison for life, there can be no objection to such reading, but otherwise, the time thus occupied is worse than wasted.

But there is where the critic is woefully mistaken. No man can read even such classics as are here named without being substantially and materially benefited and strengthened, and better able to cope with the practical bread-and-butter part of life. This statement may seem far-fetched, but it is true.

But he does not need to be confined to such books. In this intensely practical age, books are as practical as other things. In the institution over which I preside, scores of men are taking courses in the correspondence schools, doing well, and neglecting no prison requirements. Let the library be stocked with practical handbooks that tell men how to do things, such as to mix concrete, lay brick, build houses, construct telephone lines, run machinery, and similar enterprises.

Prison libraries are generally the result of heterogeneous and indiscriminate donations, the aftermath of the spring house-cleanings of the philanthropically inclined. Such donations should be accepted in the spirit in which given, graciously, thankfully, then where proper, classified, catalogued and used. But this source should not be depended on entirely, or even largely, to supply the library. The books should be selected with as much care and fidelity as they are selected for a university or a public library, for they are to accomplish the same purpose.

THE DAILY AND WEEKLY NEWSPAPER

The writer never shared in the fear of the daily or weekly newspaper in the prison. He acknowledges their necessity to himself, and feels that what is helpful to him ought not seriously to injure his men. In this day, the yellow journals, so called, are mighty agencies for reform, and they and their associate muck rakers, the magazines, are uncovering frauds and wrongs in high places, and driving powerful wrongdoers to cover; and when their work is completed, the smaller criminals will not have the baleful example of some people in high places to justify them in their evil ways. The taste for a blood-and-thunder paper, magazine or book, is infinitely preferable to

none at all. The taste will pall eventually on such pabulum and call for better.

Every prison is a community of itself and to itself. The things that elevate people outside, should be found inside the walls. There should be neatness and cleanliness and sanitary conditions everywhere. The lawns should be green, neat and carefully kept. Every prison should have a greenhouse, and flowers should abound in profusion, for civilizing, ennobling and disciplinary powers of nature at her fairest cannot be over-estimated.

The reading courses should be supplemented by instructive lectures and literary entertainments, for such times as are practicable. Theatricals should be permitted and encouraged at intervals. Such relaxation is a great lubricant. Quartettes, octettes and choirs should be organized, and all the men possible taught vocal music under a competent instructor. Orchestras and brass bands should be maintained from the inmates, and music should be a feature of very proper occasion.

To the timid soul who fears that all these pains will pamper the convict and make him love the prison and do something to be returned, let me say that the greatest punishment is in being immured behind great walls beyond which he cannot go, and any deprivation of the elements of reform and enlightened discipline is a mere bagatelle compared to the main fact of imprisonment. As Chaplain Tribou forcibly says: "Men are not sent to prison to be punished, they are punished by being sent to prison."

Let the great aim be to show the men the many legitimate avenues of improvement, enlightenment, enjoyment and amusements that are open to those who never transgress the law.

Convicts are not to be classed as a peculiar species of genus homo, but are to be regarded as *individuals*, amenable to the same influences, the same treatment, the same hopes as other men. Charles Reade, in his famous book "It Is Never Too Late to Mend," tells of two little children who come to see a thief just arrested. "Farmer Fielding," says the little girl, courtesying, a mode of reverence which was instantly copied by the boy, "we are come to see the thief; they say you have caught one." "Oh dear!" and her bright little countenance was overcast, "I couldn't have told it from a man."

Prison sentiment is a powerful auxiliary in discipline, and the consciousness among the men that “a square deal” from the management can be depended upon for the cause of enlightenment, refinement, cheer and relaxation, is worth more than a regiment of soldiers.

RELIGION AS A FACTOR

Religion ought to be a mighty factor in correct prison discipline. If *good* men need religion to help them and sustain them, certainly *bad* men need it far more. This department of discipline should be presided over and directed by a strong, level-headed, pious God-fearing man, who may have at once the confidence of the warden and his subordinates, and the inmates as well, a very difficult undertaking.

A chaplain who mistakes his mission and attends to matters not within his province, can tear up and destroy the discipline of a prison more quickly and effectively than anyone else in it. But his opportunities for good are as great as, or greater than, for evil, and if he can discern between those who desire real spiritual consolation and those who are after the loaves and fishes, between spiritual pardon and official clemency, and devote himself unreservedly to the one and resolutely eschew the other, no man can overestimate his value.

The warden and the chaplain should go hand in hand, each sustaining the other. They need to have a perfect understanding, neither mistrusting the other. And with such an understanding, let the chaplain have entire charge of his church and other spiritual services, and resolutely exclude the self-constituted evangelist, the chance visitor, and forbid absolutely the spectacular and highly emotional harangues of people utterly unacquainted with the population with which they seek to deal. In nothing should there be more rigid censorship and more careful espionage than in the chapel and other religious services.

To quote from an address made by me before the National Prison Association in Louisville in 1903: “The influence of sightseers and idle visitors to prisons, always bad, reaches the acme of its perniciousness in the chapel service, if unrestrained and unguided by prison officials of

experience and firmness, who alone are in a position to know that sickly sentimentalism is the worst possible pabulum to offer men already too eager to justify their evil deeds.”

THE DISCIPLINE OF OFFICERS

The question at once comes up, how are all these elements of discipline to be arranged for in a prison. Who are to provide and arrange for them?

This is altogether the most difficult question to answer. The most careful and exacting discipline is not for the *convict*, but for the *officials* of a prison.

If convicts are to be gradually educated and turned from crime into virtue, out of slothfulness and viciousness into habits of industry, thrift, sobriety, regularity and evenness of life, it must be through the agency of officers, themselves disciplined, educated and schooled in self-control. “No man is fit to command who has not first learned to obey.”

No man can hope to have zeal, skill and care, the patience and fidelity to bring up men from the depths of ignorance to the level of intelligence, who has not himself gone over a part of the road. “Such officers are not found.” “They must be taught and trained.”

Superintendent Brockway has said: “The warden of a prison receives into his charge with the bodily presence of the prisoners, their very soul life, and is clothed with the authority and the duty to develop that life for fullness and perfection. He who enters upon the work of soul culture, touches the life and forces of a mysterious realm. His attitude should be profoundly reverent, for he invades a sacred precinct.”

This being the case, nothing but high grade, intelligent, educated men, should be permitted to have charge of this soul life. It is absurd to hope that any other can administer the discipline necessary to build up men whom society has failed or neglected to cultivate.

Every employ   of a prison should be a man of good appearance, no physical blemishes, a man of high character, and should possess at least a good English education and be a student.

In many States, only those who have certain views upon the tariff and finance, or who are supposed to have, are permitted to have positions as officers in the prisons. But even there, a schedule of requirements within that limit may be arranged for, and rigidly adhered to. There ought to be an age limit, height, and other physical requirements, and an educational test. A mere recommendation from a politician, however high, is usually not worth the paper upon which it is written, chiefly because the aforesaid politician has only the most vague idea of the actual requirements of the prison official, and is under the impression that anybody who can occupy space will do.

There ought to be a school for the preparation of persons for institutional work. Such a school should be a national one and would be immensely profitable in the increased reformatory results in prisons, the saving of many insane from helpless insanity, and the reclaiming of many dependents.

With crime costing \$300,000,000 a year, and every criminal saved worth at least \$1,600 a year to the nation, the necessity for such a school for training specialists is very great.

DRILLING OF NEW OFFICERS

The evolution of a new guard is one of the interesting, but soul-trying experiences of every prison warden. Perhaps the warden, before assigning the new man to duty, talks to him, admonishing him as to his procedure, and aiming to tell him of the pitfalls that experience has pointed out. But he talks "to ears that hear not." He closes his first interview by handing the new man a book of rules for his perusal. But they are given "to eyes that see not." That book of rules is the result of the experience, the mistakes, the observations, the failures and the successes of generations of prison officials, and can no more be fathomed by a new guard at once, than can the Constitution of the United States, upon first reading, be comprehended by

one of Upton Sinclair's Lithuanians on his journey to the Chicago stockyards.

Under the present system, that guard must learn largely by mortifying experiences, the commission of serious mistakes, alike costly to the institution and its wards.

While there are no general schools for the preparation of officers for institutional work (the School of Philanthropy of New York possibly excepted), yet there may be organized in every prison a school for the education and development of officers, and this should be done. Let there be a definite course of reading and study arranged for officers by the superintendent, and have frequent examinations and discussions bearing on prison problems.

Fortunately our literature is rich in books worthy the most careful study and research. There is Prof. Henderson's admirable text book on "Dependents, Defectives and Delinquents;" Dr. E. C. Wines on "The State of Prisons and Child Saving Institutions," the many valuable contributions of Rev. S. J. Barrows, Superintendent Brockway, Joseph F. Scott, Frank L. Randall, Revs. August Drahts, F. H. Wines, A. McDonald, Beccaria and Howard, Lombroso and Dugdale, Eugene Smith and Charlton T. Lewis and scores of others.

Charles Reade's great muck-rake book "It Is Never Too Late to Mend," which drove the separate and silent system out of England, deserves the most careful study and thought. Victor Hugo's valued "Les Miserables" cannot be read too carefully or critically. Dickens' "American Notes" gives a most graphic account of the separate system, and his "Pickwick Papers" portray most powerfully the debtor's jail.

Every report of the National Prison Association and the Conference of Charities and Correction, replete as they are with invaluable discussions of vital topics, should be read by every prison official, as well also as the different annual or biennial reports issued by the different institutions throughout the country, which contain points of inestimable value on conducting prisons.

In one of the offices of the model prisons of this country is a great round table capable of accommodating thirty or forty people. Around this table at intervals officers are seated to listen to lectures and hear and participate in discussions upon approved methods of accomplishing the best work. This might well be emulated in every similar institution.

There should be a fund set aside in every institution to defray the expenses of a number of officials, annually to visit other institutions for the purpose of observing how the work is done elsewhere, and thus by actual contact to obtain the most approved methods. And this ought not to be confined to the heads of departments alone, but should be open to even the humblest official in his turn. In addition to its practical value, it makes him realize that his work is a profession not to be despised or made light of, and that the curing of moral ailments, the helping of those who cannot help themselves, is a grand and a glorious calling, exceeded in its value to the world by no other.

THE OFFICERS' SOCIAL ENVIRONMENTS

When the day's work is done officers should ordinarily leave the institution and its incidents behind them. They should participate actively and zealously in the outside social and religious matters of the community in which they are located. This balances them and gives them tone, and prevents pessimism, which may otherwise control them.

An officer's usefulness is measured by the amount of good influence he exerts upon those under his charge. But every warden has at times the melancholy experience of observing that instead of some officers elevating and uplifting their men by their examples, the convicts' influence has become the greater, and the officer's ideals are gradually shattered, his resiliency lost, and his influence vanished. It is to guard against this melancholy possibility that officers should be urged to cultivate the best part of outside social, moral, and religious life.

All of the progress and reform that has occurred in penal legislation, prison rules, and procedure has come as a result of the study, care, thought, and efforts of prison officials and students of penology.

All the legislation that has taken away from prisons the gospel of labor, that has robbed them of the full opportunity of doing what was intended for them, has come largely as a result of the cowardice or lack of energy of prison officials who have not stood up against the unreasonable, unrighteous demands of thoughtless labor agitators, or who have not in time remedied and improved their labor systems and conditions so they might escape just criticism.

If there is a bad prison law on any statute book, or if a good one needs to be placed there, zealous, informed prison officials should never cease agitation until the defect is remedied. These reforms will come from no other source.

In this strenuous age the people have shown that they desire to do the right thing if the way be pointed out, and the age is ripe for reforms in prison laws and customs as it is in all other lines.

All those who have to deal with offenders of the law should be brought in touch with one another. Judges and district or prosecuting attorneys should be required, as part of their duties, to visit the institutions which house the men sent there through their efforts, and should know the conditions and be in a position to offer and receive suggestions.

Whenever a likely man, once discharged, reënters a prison, let the thoughtful warden not ask, "What did this man to be returned?" but rather let him inquire: "What did I fail to do? Where is my institution defective? What precaution did society fail to take that this man fell again?"

Precepts count for *something* in prison and elsewhere. Example counts for almost *everything*. We proceed not from the abstract to the concrete in our daily lives. To-day the eyes of America are turned upon our strenuous president, not for precept, but for example; strenuous in his sports, therefore everybody becomes athletic; strenuous in literature, and all America reads; strenuous in the enforcement of the law and a "square deal" for every man, and the whole nation emulates his example and takes on a new lease of civic righteousness.

As Napoleon rode at the head of his legions through Egypt, past the pyramids, he halted, and in an impassioned address he said, "Soldiers, from

the summits of these pyramids forty centuries look down upon you.”

But the modern warden, within his castled home, environed by frowning walls, at the head of his scores of officers and superintendents of departments, may say, “Officers, from these depths of crime, misery, degradation, and despair hundreds of imprisoned souls look up to you for example, for inspiration, for guidance, and for help.”

And as officers thus receive the message and the tacit command may each resolve that his heart shall be so moved, his mind be so cultivated, strengthened and disciplined, and his actions be so guarded and guided, that the pathetic call thus made by those below him shall not be made in vain.

AFTERNOON AND EVENING

At the afternoon session Judge Simeon E. Baldwin, of Connecticut, presented the report of the Committee on Criminal Law Reform, and in the evening brief addresses were made by Miss Katharine B. Davis, Women’s Reformatory, Bedford, N. Y.; Chaplain D. H. Tribou, of the United States Naval Home, Philadelphia; Superintendent Frank L. Randall, of Minnesota, and others.

The following is a list of the officers for the current year: President, E. J. Murphy, Joliet, Ill.; First Vice-president, J. L. Milligan, Allegheny, Pa.; General Secretary, Amos W. Butler, Indianapolis, Ind.; Financial Secretary, Joseph P. Byers, New York; Assistant Secretaries, H. H. Shirer, Columbus, Ohio.; L. C. Storrs, Lansing, Mich.; W. C. Graves, Springfield, Ill.; Treasurer, Frederick H. Mills, New York; Official Stenographer, Isabel C. Barrows, New York.

Wardens’ Association: President, F. L. Randall, St. Cloud, Minn.; Secretary, C. E. Haddox, Moundsville, West Virginia.

Chaplains’ Association: President, Rev. A. J. Steelman, Joliet, Ill.; Secretary, Rev. W. E. Edgin, Jeffersonville, Ind.

Physicians' Association: President, Dr. W. D. Stewart, Moundsville, West Virginia; Secretary, Dr. O. J. Bennett, Allegheny, Pa.

Committee Chairmen: Board of Directors, Henry Wolfer, Stillwater, Minn.; Executive Committee, Joseph F. Scott, Elmira, N. Y.; Criminal Law Reform, S. E. Baldwin, New Haven, Conn.; Preventive and Reformatory Work, W. H. Whittaker, Jeffersonville, Ind.; Prevention and Probation, Julian W. Mack, Chicago, Ill.; Prison Discipline, J. A. Leonard, Mansfield, Ohio; Discharged Prisoners, Mrs. Maud Ballington Booth, New York; Statistics of Crime, S. J. Barrows, New York.

In 1907 the Association will meet in Chicago.

J. F. OHL, *Official Delegate.*

JOHN WAY, *Treasurer,*

IN ACCOUNT WITH

THE PENNSYLVANIA PRISON SOCIETY

1906.	To Balance on hand.	Principal	\$2,365 37	
January	To	Income	633 19	\$2,998 56
25.	To Life Membership fee			20 00
	To Sale \$1,000 Lehigh Valley R. R. Co., 4%			997 50
	To Membership Dues and Subscriptions			274 00
	To Interest on Deposits			41 02
	To Income from I. V. Williamson Legacy			630 00
	To Income from Investments			1,728 41
				\$6,689 49

PAYMENTS

By Amount reserved account Goodwin Mortgage	\$1,100 00
--	------------

By Bond and Mortgage R. W. C. 5 years 4½%	2,500 00
By Salaries, Secretaries and Prison Agents	1,550 00
By Janitor's Service and Office Expenses	39 00
By Expense, Delegate National Prison Congress	25 64
By Printing Journal 1906, Postage and other items	731 30
By Prison Sunday Observance Committee	76 28
By Sundry Printing, Franklin Printing Company	23 20
By Safe Deposit Box Rent, Advertising, etc.	17 50
Balance of income account	626 57
	\$6,689 49

SPECIAL FUND FOR DISCHARGED PRISONERS

Am't collected by Gen'l Secretary during the fiscal year	\$4,585 50
Am't disbursed	3,795 56

BARTON FUND

FOR TOOLS TO DISCHARGED PRISONERS

RECEIPTS

To Balance on hand January 25, 1906	\$145 59
To Income from Investments	63 00
	\$208 59

PAYMENTS

For tools to discharged prisoners	\$69 16
Balance on hand January 24, 1907	139 43
	\$208 59

C. S. WILLIAMS FUND

RECEIPTS

To Balance on hand January 25, 1906.	Principal	\$484 25	
	Income	46 50	\$530 75
To Income from Investments			113 00
			\$643 75

PAYMENTS

By \$500 Electric and People's 4% Stock Trust Certificates at 102			\$510 00
To Am't paid Home of Industry			87 25
Balance Income Account, January 24, 1907			46 50
			\$643 75

HARRIET S. BENSON FUND

RECEIPTS

To Balance on hand January 25, 1906.	Principal	\$1,500 00	
	Income	35 93	\$1,535 93
To Proceeds of sale of \$500 Electric and People's 4% Stock Trust Certificates at 102			510 00
To Income from Investments			200 00
			\$2,245 93

PAYMENTS

By \$2,000 Lehigh Valley R. R. Co. Gen'l Consol, 4% at 101½		\$2,010 00
By Accrued Interest on above		20 00
By Home of Industry		215 93

\$2,245 93

SUMMARY OF BALANCES

General Fund	\$626 57
Special Fund for Discharged Prisoners	789 94
Barton Fund	139 43
C. S. Williams Fund	46 50
Cash on hand January 24, 1907	\$1,602 44

We, the Committee appointed to audit the accounts of John Way, Treasurer, have examined accounts, compared the payments with the vouchers, checked the receipts of income from invested funds, compared the securities themselves with the list thereof and find them all correct.

JOHN W. DILLINGHAM,
GEORGE S. WETHERELL,

Auditing Committee.

PHILADELPHIA, February 20, 1907.

LIFE MEMBERS

Henry B. Ashmead,	W. W. Justice,
¹ Francis M. Brooke,	Alfred H. Love,
C. H. Brush,	F. Mortimer Lewis,
John E Carter,	¹ J. Fisher Learning,
¹ Alfred M. Collins,	Sarah A. Lewis,
Miss Mary Coles,	M. Carey Lea,
Henry S. Cattell,	William Longstreth,
B. L. Douredoure,	Caleb J. Milne,
Rev. Herman L. Duhring, D. D.,	James W. McAllister,
¹ Richard H. Downing,	Robert Patterson,
Edward Grebel Dreer,	¹ Charles Santee,

John A. Duncan,
Rev. Alfred Elwyn,
Helen M. Elwyn,
W. W. Frazier,
[1](#)George W. Hall,
Alfred C. Harrison,
Charles C. Harrison,
Emily J. Ingram, M. D.,
John P. Jenks,

David Sulzberger,
George C. Thomas,
Henry T. Townsend,
James W. Walk, M. D.,
E. B. Warren,
James V. Watson,
John Way,
Mary S. Whelen.

1 Deceased.

ANNUAL MEMBERS

Hon. William N. Ashman,	William Koelle,
Rev. Samuel E. Appleton,	William Kennard, Jr.,
H. St. Clair Ash, M. D.,	Harry Kennedy,
Joshua L. Baily,	J. Albert Koons,
T. Wistar Brown,	Louisa D. Lovett,
Samuel Biddle,	John J. Lytle,
Rev. R. Heber Barnes,	Josiah W. Leeds,
William Burnham,	Deborah C. Leeds,
John E. Baird,	Charles H. LeFevre,
Rev. Lewis C. Baker,	Mrs. P. W. Lawrence,
Henry W. Boies,	Rebecca C. Latimer,
Ethel M. Boies,	George A. Latimer, Jr.,
David Boies,	Theodore J. Lewis,
Helen M. Boies,	Mary Lewis,
J. Henry Bartlett,	Richard H. Lytle,
Henry D. Booth,	Rev. Philip Lamerdin,
Catharine C. Biddle,	Frank H. Longshore,
Hannah S. Biddle,	Susanna W. Lippincott,
Elizabeth Bradford,	Benjamin K. Liveright,
T. Broom Belfield,	Charles B. Miller,
Mrs. Robert S. Bright,	Mrs. M. A. Mason,
Robert P. P. Bradford,	Isaac P. Miller,
Layyah Barakat,	Charles M. Morton,
Joseph K. Calley,	Hon. J. Willis Martin,
Ethel Conderman,	John Marston,
John H. Converse,	Mrs. Henry C. Mayer,
Mrs. E. W. Clark,	George R. Meloney,
S. W. Colton, Jr.,	Thomas H. McCollin,
Mrs. S. W. Colton, Jr.,	Rev. H. Cresson McHenry,
Miss F. Clark,	Charles McDole,
Henry H. Collins,	Mrs. L. M. Mewes,

E. W. Clark, Jr.,
John Callahan,
Agnes Camp, M. D.,
Jonas G. Clemmer,
Charles F. Cripps,
Henry C. Cassel,
John H. Dillingham,
Edward T. Davis,
Isaac L. Detweiler,
Walter L. Detwiler,
Rev. J. G. Dubbs,
Charles E. D'Invillier,
Albert M. Dallett,
Agnes Dean, M. D.,
Mrs. E. C. Denniston,
Samuel Emlen,
Joseph Elkinton,
Otto Eisenlohr,
Rev. Solomon G. Engle,
B. W. Fleisher,
Spencer Fullerton,
Esther Fricke,
Mrs. Horace Fassett,
Melvin M. Franklin, M. D.,
Susanna Gaskill,
Sylvester Garrett,
D. W. Grafley,
Elizabeth N. Garrett,
Mrs. W. S. Grant, Jr.,
W. H. Gilbert,
Mrs. C. L. Grubb,
Samuel B. Garrigues,
Mrs. Louis Gerstley,
Luther Gerhard,
Mrs. E. W. Gormley,
Sallie H. Green,
Mary S. Gregg,

Rev. H. E. Meyer,
Joseph C. Noblit,
William F. Overman,
Rev. J. F. Ohl,
Albert Oetinger,
Frederick J. Pooley,
Charles Platt,
Laura N. Platt,
Miss L. N. Platt,
George F. Parker,
Joseph G. Rosengarten,
George J. Reger,
Marie Rosenberg,
Anthony W. Robinson,
Francis B. Reeves,
Mrs. Evan Randolph,
Mary Randolph,
Mrs. M. B. Riehlé,
David Scull,
Rev. F. H. Senft,
P. H. Spellissy,
William Scattergood,
Isaac Slack,
Dr. William C. Stokes,
G. A. Schwarz,
Samuel Snellenburg,
Mrs. Samuel Snellenburg,
Frank H. Starr,
R. C. Shafges,
Esther Strawbridge,
Mrs. E. Stillwell,
John Smallzell,
Augustus Thomas,
Mrs. George C. Thomas,
Augusta Thomas,
Rev. Floyd W. Tomkins,
William E. Tatum,

Rev. J. Andrews Harris,
William H. Hart, Jr.,
Edwin Hagert,
William B. Hackenburg,
Mrs. W. W. Harding,
William S. Hallowell,
Clyde A. Heller,
Miss C. V. Hodges,
J. H. M. Hayes,
Rev. C. Rowland Hill,
Charles P. Hastings,
Jacob D. Hoffman,
D. John Hampton,
Mrs. George W. Hensell,
Edwin S. Johnston,
William T. W. Jester,
William Kennard,

Mrs. J. F. Unger,
G. H. S. Uhler,
George Vaux,
Elias H. White,
Catharine A. Wentz,
Emily Whelen,
Sarah S. White,
Mrs. Frances Howard Williams,
Thomas B. Watson,
Samuel L. Whitson,
William C. Warren,
Mary S. Wetherell,
George S. Wetherell,
A. J. Wright,
E. M. Zimmerman,
Mrs. E. M. Zimmerman.

FORM OF BEQUEST OF PERSONAL PROPERTY

I give and bequeath to "THE PENNSYLVANIA PRISON SOCIETY" the sum of Dollars.

FORM OF DEVISE OF REAL ESTATE

I give and devise to "THE PENNSYLVANIA PRISON SOCIETY" all that certain piece or parcel of land. (Here describe the property.)

ARTICLE V.

The Acting Committee shall consist of the officers of the Society, *ex-officio* and fifty other members. They shall visit the prison at least twice a month, inquire into the circumstances of the prisoners, and report such abuses as they shall discover to the proper officers appointed to remedy them. They shall examine the influence of confinement on the morals of the prisoners.

They shall keep regular minutes of their proceedings, which shall be submitted at every stated meeting of the Society, and shall be authorized to fill vacancies occurring in their own body, whether arising from death or removal from the city, or from inability or neglect to visit the prisons in accordance with their regulations. They shall also have the sole power of electing new members.

ARTICLE VI.

Candidates for membership may be proposed at any meeting of the Society or of the Acting Committee; but no election shall take place within ten days after such nomination. Each member shall pay an annual contribution of two dollars. If any member neglects or refuses to pay such contribution within three months after due notice has been given such person, the Acting Committee may, at its option, strike said name from the list of members. The payment of twenty dollars at any one time shall constitute a Life Membership. Any person paying not less than five hundred dollars shall be called a Patron of the Society.

ARTICLE VII.

Honorary members may be elected at such times as the Society may deem expedient.

ARTICLE VIII.

The Society shall hold an Annual Meeting on the fourth Fifth-day (Thursday) in the First month (January) of each year, and Stated Meetings on the fourth Fifth-day (Thursday) in the months of April, July, and October, at which seven shall constitute a quorum.

ARTICLE IX.

No alteration in the Constitution shall be made unless the same shall have been proposed in writing at a stated meeting of the Society, held not less than three months previous to the adoption of such alteration; and no such amendment shall be adopted unless approved by the votes of three-fourths of the members present.

The Secretary shall state on the notices of that meeting that an amendment or amendments will be acted upon. And not later than the usual time of sending said notices, he shall furnish the members with written copies of the word or words, and form of the proposed amendment *displayed*, and so much of the original form of the article to be amended as will show the relation of the proposed amendment to the context, and of the article in its amended form with all the words of the amendment displayed. All other questions shall be decided, when there is a division, by a majority of votes; in those where the Society is equally divided, the presiding officer shall have the casting vote.

OF VISITORS.

No person who is not an official visitor of the prison, or who has not a written permission, according to such rules as the Inspectors may adopt as aforesaid, shall be allowed to visit the same; the official visitors are: the Governor, the Speaker and members of the Senate, the Speaker and members of the House of Representatives; the Secretary of the Commonwealth; the Judges of the Supreme Court; the Attorney-General and his Deputies; the President and Associate Judges of all the courts in the State; the Mayor and Records of the cities of Philadelphia, Lancaster, and Pittsburg; Commissioners and Sheriffs of the several Counties; and the "Acting Committee of the Philadelphia Society for Alleviating the Miseries of Public Prisons." Note: Now named "The Pennsylvania Prison Society."

AN ACT TO INCORPORATE THE

Philadelphia Society for Alleviating the Miseries of Public Prisons.

SECTION I.—*Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania, in General Assembly met, and it is hereby enacted by the authority of the same,* That all and every the persons who shall at the time of the passing of this Act be members of the Society called “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” shall be and they are hereby created and declared to be one body, politic and corporate, by the name, style and title of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” and by the same name shall have perpetual succession, and shall be able to sue and be sued, implead and be impleaded in all courts of record or elsewhere, and to take and receive, hold and enjoy, by purchase, grant, devise, or bequest to them and their successors, lands, tenements, rents, annuities, franchises, hereditaments, goods and chattels of whatsoever nature, kind, or quality soever, real, personal, or mixed, or choses in action, and the same from time to time to sell, grant, devise, alien, or dispose of; *provided* That the clear yearly value or income of the necessary houses, lands, tenements, rents, annuities, and other hereditaments, and real estate of the said corporation, and the interest of money by it lent, shall not exceed the sum of five thousand dollars; and also to make and have a common seal, and the same to break, alter, and renew at pleasure; and also to ordain, establish, and put in execution such by-laws, ordinances, and regulations as shall appear necessary and convenient for the government of the said corporation, not being contrary to this Charter or the Constitution and laws of the United States, or of this Commonwealth, and generally to do all and singular the matters and things which to them it shall lawfully appertain to do for the well-being of the said corporation, and the due management and ordering of the affairs thereof; and provided further, that the objects of the Society shall be confined to the alleviation of the miseries of public prisons, the improvement of prison discipline and relief of discharged prisoners.

SAM'L. ANDERSON, *Speaker of House.*
THOS. RINGLAND, *Speaker of Senate.*

Approved the 6th day of April, Anno Domini Eighteen Hundred and Thirty-three.

GEORGE WOLF.

LEGAL CHANGE OF NAME.

**The Following Confirms the Action Relative to the Change of the Name
of the Prison Society,**

Decree:

And now, to wit, this 27th day of January, A. D. 1886, on motion of A. Sidney Biddle, Esq., the Petition and Application for change of name filed by "The Philadelphia Society for Alleviating the Miseries of Public Prisons," having been presented and considered, and it appearing that the order of court heretofore made as to advertisement has been duly complied with and due notice of said application to the Auditor-General of the State of Pennsylvania being shown, it is Ordered, Adjudged, and Decreed, that the name of the said Society shall hereafter be "THE PENNSYLVANIA PRISON SOCIETY," to all intents and purposes as if the same had been the original name of the said Society, and the same name shall be deemed and taken to be a part of the Charter of the said society upon the recording of the said Application with its indorsements and this Decree in the Office of the Recorder of Deeds of this County, and upon filing with the Auditor-General a Copy of this Decree.

[Signed]

JOSEPH ALLISON,

Record:

Recorded in the office for the Recording of Deeds in and for the City and County of Philadelphia, on Charter Book No. 11, page 1064. Witness my hand and seal of Office this 28th day of June, A. D. 1886.

GEO. G. PIRRIE, *Recorder of Deeds.*

Transcriber's Note:

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO. 46,
JANUARY 1907) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.